

NEW OR TRANSFER
LIQUOR LICENSE OR
PERMIT APPLICATION

FOR LIQUOR DIVISION USE ONLY			
Customer #:			
Trf from:			
Reviewer:	Initials		Date
Agent:		/	/
Mgr:		/	/

To be completed by City / Town / County Clerk

Local License #: 70 KS32714

License Fees
Annual Fee: \$ 1050.00
Prorated Fee: \$
Transfer Fee: \$
Publishing Fee: \$ 100.00
Date filed with clerk: 2 / 13 / 25
Advertising Dates: (2 Consecutive Weeks Prior to Hearing) 2/27/2025 & 3/6/2025
Public Hearing Date: 3 / 10 / 2025

Publishing Fee Direct Billed to Applicant: ☐

License Term: 4 / 1 / 2025 Through 3 / 31 / 2026
Month Day Year Month Day Year

LICENSING AUTHORITY: Begin publishing promptly. As W.S. 12-4-104(d) specifies: NO LICENSING AUTHORITY SHALL APPROVE OR DENY THE APPLICATION UNTIL THE LIQUOR DIVISION HAS CERTIFIED THE APPLICATION IS COMPLETE.

Applicant (Business Name): Thompson-weaver llc
Doing Business As (DBA) / Trade Name: Parkway Pizza
Building to be licensed / Building Address: 3753 E Lincolnway B-6
(Address Number, and Suite or Unit Number, and Street or Road Name)
Cheyenne WY 82001 Laramie
City State Zip County
Local Mailing Address: 3753 E Lincolnway B-6
(Address Number or PO Box, and Suite or Unit Number, and Street or Road Name)
Cheyenne WY 82001 Laramie
City State Zip County
Local Business Telephone Number: 307 Fax Number:
Business E-Mail Address: ParkwayPizza3753@gmail.com
Business Primary Contact: Christopher Thompson
First Name Last Name

FILING FOR

- ☒ NEW LICENSE
☐ TRANSFER OF LOCATION
☐ TRANSFER OF OWNERSHIP
☐ ASSIGNMENT LETTER MUST BE ATTACHED

FORMERLY HELD BY:

FILING IN (CHOOSE ONLY ONE)

- ☒ CITY / TOWN OF: Cheyenne
☐ COUNTY OF:

FILING AS (CHOOSE ONLY ONE)

- ☐ INDIVIDUAL
☐ PARTNERSHIP
☐ LP ☐ LLP ☐ LLLP
☒ LLC ☐ LC
☐ CORPORATION (INC)
☐ POLITICAL SUBDIVISION
☐ ORGANIZATION
☐ OTHER

TYPE OF LICENSE OR PERMIT (CHOOSE ONLY ONE)

- | | | |
|---|---|---|
| ☐ RETAIL LIQUOR LICENSE
PRIMARY BUSINESS TYPE (CHOOSE ONLY ONE)
☐ ON-PREMISE BAR
☐ OFF-PREMISE PACKAGE STORE
☐ ON & OFF PREMISE BAR & PACKAGE STORE | ☒ RESTAURANT LIQUOR LICENSE
☐ BAR AND GRILL LIQUOR LICENSE
☐ RESORT LIQUOR LICENSE
LIMITED RETAIL LIQUOR LICENSE (CLUB)
☐ VETERANS CLUB
☐ FRATERNAL CLUB
☐ GOLF CLUB
☐ SOCIAL CLUB | ☐ MICROBREWERY PERMIT
☐ WINERY PERMIT
☐ MANUFACTURER SATELLITE PERMIT
☐ WINERY SATELLITE PERMIT
☐ COUNTY MALT BEVERAGE PERMIT
☐ SPECIAL MALT BEVERAGE PERMIT |
|---|---|---|

SPECIAL STATUTORY DESIGNATIONS (CHOOSE ONLY ONE)

- | | |
|--|--|
| ☐ COMMERCIAL AIRPORT (W.S. 12-4-201(d)(iv)) | ☐ RESORT (W.S. 12-4-401(iv) / 12-5-201(f)) |
| ☐ GOLF CLUB (W.S. 12-5-201(f)) | ☐ GOLF CLUB-POLIT. SUBDIVISION (W.S. 12-4-301(e) / 12-5-201(f)) |
| ☐ GUEST RANCH (W.S. 12-5-201(f)) | ☐ Other: |

OPERATIONAL STATUS (To Assist the Liquor Division with scheduling inspections (W.S. 12-1-101(a)(xxi) / 12-2-301(c) / 12-4-103(a)(iv)):

- | | |
|---|---|
| ☒ FULL TIME | MONTHS OF OPERATION from to ☒ All Year (Jan-Dec) |
| ☐ SEASONAL | DAYS OF WEEK OF OPERATION from to ☒ Every Day (Mon-Sun) |
| ☐ NON-OPERATIONAL / PARKED | HOURS OF OPERATION from 11 AM to 9:00 PM ☐ 24 Hours a Day |

ALL APPLICANTS MUST COMPLETE QUESTIONS 1- 3**1. BUILDING OWNERSHIP: W.S. 12-4-103(a)(iii)**

Does the Applicant own or lease the licensed building?

- (a) The Applicant **OWNS** the licensed building.
 (b) The Applicant **LEASES** the licensed building.

☐ YES (own)
☒ YES (lease)

If the building is leased, please submit a copy of the lease and indicate:

- (i) Lease term expiration date; located on page 2 paragraph 3.

Note: The lease term **MUST** continue at least through the term of the liquor license or permit

- (ii) Sales provision for alcoholic or malt beverages: located, on page 2 paragraph 4.

Note: The lease **MUST** contain a provision for **SALE OF ALCOHOLIC or MALT BEVERAGES**.**2. LIQUOR BUSINESS CONTROL: W.S. 12-4-601(b)**

- (a) To operate the liquor business, has the business or license/permit been assigned, leased, transferred or contracted with any other person (entity) to operate and assert total or partial control of the license or permit or the licensed building? ☐ YES ☒ NO

- (b) If the answer was **YES** to 2(a) above, explain fully and submit any documents in connection there within.

3. INTEREST IN LICENSE OR PERMIT: W.S. 12-5-401, 12-5-402, 12-5-403 -

Does any alcohol manufacturer, brewer, rectifier, wholesaler, or through a subsidiary affiliate, officer, director or member of any such firm:

- (a) Hold any interest in the license/permit applied for? ☐ YES ☒ NO
 (b) Furnish by way of loan or any other money or financial assistance for purposes hereof in the business? ☐ YES ☒ NO
 (c) Furnish, give, rent or loan any equipment, fixtures, interior decorations or signs other than standard brewery or manufacturer's signs? ☐ YES ☒ NO
 (d) If the answer was **YES** to any of the above, explain fully and submit any documents in connection there within.

4. RETAIL LIQUOR LICENSE-COUNTY LOCATIONS ONLY: W.S. 12-4-201(f)(ii)Is the licensed building within five (5) miles of an incorporated town or city? ☐ YES ☐ NO**5. RETAIL LIQUOR LICENSE-COMMERCIAL SERVICE AIRPORTS ONLY: W.S. 12-4-201(m)**

- (a) Will food and beverage services be contracted or subcontracted? ☐ YES ☐ NO
 1. If **YES**, is a copy of the food and beverage contract or lease attached? ☐ YES ☐ NO

6. BAR AND GRILL LICENSE OR RESTAURANT LIQUOR LICENSE ONLY: 12-4-413(a) / W.S. 12-4-407(a)Is a copy of the valid food service permit or the approved permit application attached? ☐ YES ☐ NO**7. RESORT LIQUOR LICENSE: W.S. 12-4-401 through W.S. 12-4-403(b)**

Does the resort complex:

- (a) Have an actual valuation of at least one million dollars, or have committed or expended at least one million dollars (\$1,000,000.00) on the complex, excluding the value of the land? W.S. 12-4-401(b)(i) ☐ YES ☐ NO
 (b) Include a restaurant and a convention facility; a convention facility that will seat at least one hundred (100) persons? W.S. 12-4-401(b)(ii) ☐ YES ☐ NO
 (c) Include motel, hotel or privately owned condominium, town house or home accommodations approved for short term occupancy with at least one hundred (100) sleeping rooms? W.S. 12-4-401(b)(iii) ☐ YES ☐ NO
 (d) If no on question (c), have a ski resort facility open to the general public in which has been committed or expended not less than 10 million dollars (\$10,000,000.00)? W.S. 12-4-401(b)(iv) ☐ YES ☐ NO
 (e) Will food and beverage services be contracted or subcontracted? W.S. 12-4-403(b) ☐ YES ☐ NO
 1. If **YES** to (e), is a copy of the food and beverage contract or lease attached? ☐ YES ☐ NO

8. MICROBREWERY PERMIT ONLY: WHOLESALE DISTRIBUTION: W.S. 12-2-201(a)

- (a) Will the microbrewery self-distribute its products or distribute through a licensed wholesaler? ☐ YES ☐ NO

If **YES**, a wholesale malt beverage license from the Liquor Division will be required.

9. LIMITED RETAIL (CLUB) LIQUOR LICENSE:

FRATERNAL CLUBS W.S. 12-1-101(a)(iii)(B)

- (a) Has the fraternal organization been actively operating in at least thirty-six (36) states? ☐ YES ☐ NO
- (b) Has the fraternal organization been actively in existence for at least twenty (20) years? ☐ YES ☐ NO

10. LIMITED RETAIL (CLUB) LIQUOR LICENSE:

VETERANS CLUBS W.S. 12-1-101(a)(iii)(A):

- (a) Does the Veteran's organization hold a charter by the Congress of the United States? ☐ YES ☐ NO
- (b) Is the membership of the Veteran's organization comprised only of Veterans and its duly organized auxiliary? ☐ YES ☐ NO

11. LIMITED RETAIL (CLUB) LIQUOR LICENSE:

GOLF CLUBS W.S. 12-1-101(a)(iii)(D) / W.S. 12-4-301(e):

- (a) Does the golf club have more than fifty (50) bona fide members? ☐ YES ☐ NO
- (b) Does the Applicant, maintain, or operate a bona fide golf course together with a clubhouse? ☐ YES ☐ NO
- (c) Is the Applicant a Political Subdivision of the state that owns, maintains, or operates this golf course? ☐ YES ☐ NO
1. Will food and beverage services be contracted or subcontracted? W.S. 12-4-301(e) ☐ YES ☐ NO
2. If YES, is a copy of the food and beverage contract or lease attached? ☐ YES ☐ NO

12. LIMITED RETAIL (CLUB) LIQUOR LICENSE:

SOCIAL CLUBS W.S. 12-1-101(a)(iii)(E) / W.S. 12-4-301(b):

- (a) Does the club have more than one hundred (100) bona fide members who are residents of the county in which the club is located? ☐ YES ☐ NO
- (b) Is the club incorporated and operating solely as a nonprofit organization under the laws of this state? ☐ YES ☐ NO
- (c) Is the club qualified as a tax-exempt organization under the Internal Revenue Service? ☐ YES ☐ NO
- (d) Has the club been in continuous operation for a period of not less than one (1) year? ☐ YES ☐ NO
- (e) Has the club received twenty-five dollars (\$25.00) from each bona fide member as recorded by the secretary of the club and are club members at the time of this application in good standing by having paid at least one (1) full year in dues? ☐ YES ☐ NO
- (f) Does the club hold quarterly meetings and have an actively engaged membership carrying out the objectives of the club? ☐ YES ☐ NO
- (g) Is a true copy of the club bylaws attached to this application? ☐ YES ☐ NO
- (h) Has at least fifty one percent (51%) of the membership signed a petition indicating a desire to secure a Limited Retail Liquor License? (Petition(s) Attached) ☐ YES ☐ NO

13. Applicant is Filing As Individual, Partnership, Political Subdivision, Organization or Other:
W.S. 12-4-102(a)(ii) & (iii)

Each individual, partner or officer (as applicable) must complete all of the information below.
(If more information is required, list on a separate piece of paper and attach to this application.)

True and Correct Name	Date of Birth	Residence Address No. & Street City, State & Zip DO NOT LIST PO BOXES	Residence Phone Number	Have you been a DOMICILED resident for at least 1 year and not claimed residence in any other state in the last year?	Have you been convicted within the previous 10 years of:	
					a Felony Violation Relating to Alcoholic Liquor or Malt Beverages?	any Violation Relating to Alcoholic Liquor or Malt Beverages?
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐

14. Applicant is Filing As a Corporation, Limited Company, Limited Liability Company, Limited Liability Partnership or Limited Partnership: W.S. 12-4-102(a)(iv) & (v)

Each stockholder holding, either jointly or severally, ten percent (10%) or more of the outstanding and issued capital stock or ownership of the corporation, limited liability company, limited liability partnership, or limited partnership.

Each Officer, Director or LLC member must complete all of the information below.
(If more information is required, list on a separate piece of paper and attach to this application)

True and Correct Name	Date of Birth	Residence Address No. & Street City, State & Zip DO NOT LIST PO BOXES	Residence Phone Number	No. of Years in Corp or LLC	% of Corporate Stock or Ownership Held	Have you been convicted within the previous 10 years of:	
						a Felony Violation Relating to Alcoholic Liquor or Malt Beverages?	any Violation Relating to Alcoholic Liquor or Malt Beverages?
Christopher Thompson		Broken Wheel Cheyenne WY 82007	307 220-4216	1	50	YES ☐ NO ☒	YES ☐ NO ☒
Mitchell Weaver		Same as above	307 214-1460	1	50	YES ☐ NO ☒	YES ☐ NO ☒
						YES ☐ NO ☐	YES ☐ NO ☐
						YES ☐ NO ☐	YES ☐ NO ☐
						YES ☐ NO ☐	YES ☐ NO ☐
						YES ☐ NO ☐	YES ☐ NO ☐

REQUIRED ATTACHMENTS:

- ☐ A statement indicating the financial condition and financial stability of the Applicant. W.S. 12-4-102(a)(vi).
- ☐ If transferring a license or permit to another Applicant, attach a form of assignment from the current licensee to the new Applicant authorizing the transfer. W.S. 12-4-601(b).
- ☐ A copy of any lease agreements. W.S. 12-4-103(a)(iii)
- ☐ Bar & Grill and Restaurant liquor license Applicants: attach a copy of the current Food Service Permit or the approved permit application for the Applicant and for the licensed building location. 12-4-413(a) / W.S. 12-4-407(a)
- ☐ If food and beverage services will be contracted or subcontracted attach a copy of the contract or lease agreement W.S. 12-4-201(m) / W.S. 12-4-301(e) / W.S. 12-4-403(b)
- ☐ If filing for a Golf Club or Social Club liquor license attach a copy of the club's bylaws W.S. 12-4-301(c)

OATH OR VERIFICATION

Requires signatures by **ALL** Individuals, **ALL** Partners, **ONE (1)** LLC Member, or **TWO (2)** Corporate Officers or Directors except that if all the stock of the corporation is owned by **ONE (1)** individual then that individual may sign and verify the application upon his oath, or **TWO (2)** Club Officers. W.S. 12-4-102(b)

Under penalty of perjury, and the possible revocation or cancellation of the license, I swear the above stated facts, are true and accurate

STATE OF WYOMING)
COUNTY OF Laramie) SS.

Signed and sworn to before me on this 30th day of August, 2024 that the facts alleged in the foregoing instrument are true by the following:

1) <u>Christopher Thompson</u> (Signature)	<u>Christopher Thompson</u> (Printed Name)	<u>owner</u> Title
2) _____ (Signature)	_____ (Printed Name)	_____ Title
3) _____ (Signature)	_____ (Printed Name)	_____ Title
4) _____ (Signature)	_____ (Printed Name)	_____ Title
5) _____ (Signature)	_____ (Printed Name)	_____ Title

Witness my hand and official seal:



Signature of Notary Public
My commission expires: Dec 07, 2027



Parkway Pizza Liquor License Application Letter

August 30, 2024

Wyoming liquor license

To the Mayor and Members of City Council,

I am writing to apply for a liquor license for our restaurant formally, it is located at 3753 Lincolnway. We believe that offering alcoholic beverages will enhance our customers' dining experience.

Our Restaurant is committed to promoting responsible alcohol service and ensuring the safety and well-being of our customers. We have implemented policies and procedures to prevent underage drinking and overconsumption of alcohol, including staff training, strict ID verification protocols, and TIPS certification.

We understand the importance of complying with all relevant laws and regulations regarding the sale and service of alcohol. We have attached the necessary documentation, including our business license, floor plan, and alcohol service policies, as the liquor licensing board requires.

We are confident that our restaurant will be a responsible and reputable establishment in our community. We appreciate your consideration of our application and look forward to the opportunity to serve our customers responsibly and legally.

Thank you for your time and attention to this matter. Please do not hesitate to contact me if you require any additional information or documentation.

Sincerely,

Christopher Thompson

Owner

**RETAIL LEASE
FOR
CHEYENNE PLAZA SHOPPING CENTER
BY AND BETWEEN

CHEYENNE PLAZA LLC
"AS LANDLORD"

AND

THOMPSON-WEAVER, LLC
"AS TENANT"**

RETAIL LEASE
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RETAIL LEASE
FOR
THOMPSON-WEAVER, LLC

THIS INDENTURE is made and entered by and between the Landlord and Tenant named in Article I as of the date set forth therein. Landlord and Tenant in consideration of the covenants herein, agree as follows:

WITNESSETH:

ARTICLE I
REFERENCE DATA

1.1 INCORPORATED INFORMATION. Each reference in the Lease to any of the following subjects shall be construed to incorporate the data stated for that subject in this Article I:

Landlord:	Cheyenne Plaza, LLC a Colorado Limited Liability Company
Landlord's Address:	6500 S. Quebec St., Suite 300 Englewood, CO 80111
Tenant:	Thompson-Weaver, LLC a Wyoming limited liability company Thompson-weaver
Tenant's Trade Name:	
Tenant's Address:	806 Broken Wheel Ct. Cheyenne, WY 82007
Address and Description of Demised Premises:	3753 E. Lincolnway (aka 3751 E. Lincolnway) Cheyenne, WY 82001 (shown as Unit 6 on Exhibit A)
Name of Shopping Center:	Cheyenne Plaza Shopping Center
Total Floor Area of Shopping Center Within Landlord's Parcel	151,146 square feet
Floor Area of Demised Premises:	2,250 square feet
Possession Date:	Upon mutual execution of this Lease, written notice to Tenant from Landlord that the conditions of the Lease Contingency described in Section 24.28 have been met and the Demised Premises is ready for possession by Tenant, and Landlord's receipt of

Security Deposit, first month's rent, and Tenant's certificate of insurance

Scheduled Term Commencement Date: June 1, 2024

Term Expiration Date: The last day of the final calendar month of the Lease Term. The Lease shall end on the Expiration Date, unless sooner terminated as otherwise provided herein.

Term of Lease: Three (3) years

Minimum Rent:	<u>Annual</u>	<u>Monthly</u>	<u>Rate</u>	<u>Year</u>
	\$40,275.00	\$3,356.25	\$17.90	One
	\$41,483.25	\$3,456.94	\$18.44	Two
	\$42,727.75	\$3,560.64	\$18.99	Three

Additional Rent: Tenant's proportionate share: 0.99%

Common Area
Operating Costs: Tenant's proportionate share: 0.99%

Initial Estimated Monthly Payment: \$515.63

Security Deposit: \$3,871.88

Tenant's Use: Tenant shall use and operate the Demised Premises solely for the purpose of: a casual style Italian restaurant serving Italian food and pizza and beverages (as ancillary thereto) for dine-in customers and to-go delivery service and for no other purpose. Furthermore, beverage service may include the sale of alcoholic or malt beverages as an incidental part of its food service operation, provided that Tenant shall obtain and maintain the appropriate liquor license from the proper licensing authority. Tenant shall be responsible for obtaining and maintaining any and all applicable licenses from any municipal, governmental, or quasi-governmental entity having

authority to impose regulations pertaining to Tenant’s use of the Demised Premises. At any time during the term of this Lease, or any renewals thereof, with sixty (60) days prior written notice to Tenant, Landlord, at its sole discretion, may revoke Tenant’s right to sell alcoholic or malt beverages as granted above

Option to Extend Term:	None
Option Year Rent:	N/A
Guarantors:	Christopher Thompson and Mitchell M. Weaver

1.2 **EXHIBITS.** The Exhibits and addendum listed below are incorporated into this Lease by reference:

Exhibit A	Demised Premises
Exhibit B	Shopping Center (subject to change under Section 24.14)
Exhibit One	Landlord's and Tenant's Work
Exhibit Two	Furniture, Fixtures and Equipment
Addendum One	Guaranty of Lease

ARTICLE II
GRANT AND TERM

2.1 **DEMISED PREMISES.** In consideration of and in reliance upon the financial strength of Tenant, and in consideration of the personal guarantee(s) by the Guarantor(s) stated in Article I which guarantee(s) are attached as Addendum One, and in consideration of the rents, covenants and agreements herein reserved and contained on the part of Tenant to be performed, Landlord does hereby Lease to Tenant the demised premises as described in Article 1 ("Demised Premises"), comprising a portion of the building or property as outlined in red ink on Exhibit "A", attached hereto and incorporated herein by reference. Said Demised Premises are located on a tract of land, more particularly described on Exhibit "B", attached hereto and incorporated herein by reference, hereinafter referred to as "the Shopping Center".

Said Demised Premises shall not include, and Landlord reserves, the roof, demising floors and ceilings, exterior walls and structural members therefor, as well as all other Common Areas appurtenant thereto (as defined hereinafter); and further, reserving to the Landlord the right to place within the Demised Premises, in a manner so as to cause the least possible interference with the Tenant's use and enjoyment of said Demised Premises, utility lines, conduits, pipes, and the like to serve adjoining premises other than those specifically herein demised; and further, reserving to the Landlord the sole and exclusive right to replace, modify, supplement, maintain and repair such utility lines, conduits, pipes, and the like, if any, in, over, through and upon the Demised Premises as

may now, have been or may in the future be installed in the Shopping Center of which the Demised Premises constitute a part.

2.2 **TERM.** The term of this Lease ("Term") and the Tenant's obligation to pay Rent (as hereinafter defined) hereunder shall commence upon the first occurrence of any one of the following events, to-wit ("Commencement Date"):

(a) At 12:00 noon on the Scheduled Term Commencement Date set forth in Article I;

The Term of this Lease shall expire at 12:00 noon on the date set forth for expiration of the Term in Article I.

2.3 **TENANT'S PREPARATION OF DEMISED PREMISES.** In order to expedite commencement of Tenant's business in the Demised Premises, Tenant may enter, after having first obtained Landlord's written permission, upon the Demised Premises prior to the Commencement Date of the Term hereof for the sole purpose of performing Tenant's work as defined in Exhibit One attached hereto and incorporated herein by reference ("Tenant's Work"). Tenant's Work shall be performed in a manner so as not to unreasonably interfere with Landlord's construction activities. At such time as Tenant's Work is commenced, Tenant shall pay for any and all utilities furnished to the Demised Premises. It is expressly understood that prior to Tenant's entry into the Demised Premises for the construction of Tenant's Work, Tenant shall first obtain Landlord's written approval of Tenant's plans and specifications therefor; and Tenant shall deposit with the Landlord the following:

(a) Any and all necessary Certificates of Insurance evidencing insurance coverage in force in accordance with the provisions of Articles XII and XIII hereof, and, in addition, builder's risk and contractor's liability insurance, if required by Landlord, in the amounts required by Landlord.

(b) A written list of all contractors and materialmen to be utilized in the completion of Tenant's Work.

(c) Evidence satisfactory to Landlord that all laborers entering upon the Demised Premises to perform Tenant's Work are adequately covered by Workmen's Compensation Insurance. Tenant shall indemnify Landlord and Landlord's insurer from any loss or claim resulting from Tenant's, or its contractors, failure to carry Workmen's Compensation Insurance.

(d) Evidence satisfactory to Landlord that all permits, certificates and licenses required by any governmental or quasi-governmental agency for such construction have been obtained and that proper application has been made for those permits, certificates and licenses required by such agencies for the operation of Tenant's business.

2.4 **OPENING OF TENANT'S BUSINESS.** At such time as Landlord has substantially performed all of Landlord's Work, if any, Tenant shall promptly at its own cost and expense, cause all of Tenant's Work to be performed. Further, Tenant shall promptly equip the Demised Premises with any and all necessary trade

fixtures, personal property and stock in trade to facilitate the orderly operation of Tenant's business activities. Prior to opening for business, Tenant shall obtain Landlord's written acceptance of Tenant's Work, including the construction of Tenant's exterior sign. Tenant shall promptly open for business after Tenant's completion of Tenant's Work. In event of Tenant's failure to promptly open for business, at Landlord's option, Landlord may elect to terminate this Lease or to affirm this Lease and declare an Event of Default (as hereinafter defined).

ARTICLE III
RENT

3.1 **MINIMUM RENT.** During the Term hereof, Tenant agrees to pay to Landlord at Landlord's Address, or at such other place as the Landlord may from time to time designate in writing, minimum rent ("Minimum Rent") for the Demised Premises in the amount set forth in Article I payable in advance on the first day of each month, without deduction or set-off. It being understood that if the Term of this Lease commences prior to or after the date set forth in Section 2.2(a) hereof, then for each day in the Term prior to said date, or after said date said total Minimum Rent shall be increased or decreased, as the case may be by 1/30 of the average monthly installment due hereunder.

3.2 **RENT INCREASE.** Tenant's Minimum Rent shall periodically increase to such amounts as set forth in Article I.

3.3 **ADDITIONAL RENT.** Any other charges to be paid by the Tenant pursuant to the provisions of any other Sections of this Lease shall be designated as additional rent ("Additional Rent"). For convenience, Tenant may include payment for such charges and the Minimum Rent in one monthly check, provided all Additional Rent items are shown separately from Minimum Rent thereon. Such Additional Rent shall not for any reason be considered as Minimum Rent as hereinabove defined. Failure of Tenant to pay Additional Rent shall give Landlord the right to declare an Event of Default.

3.4 **TENANT'S PROPORTIONATE SHARE.** Tenant's proportionate share of Taxes, Common Area Operating Costs and Landlord's Insurance (all as hereinafter defined) for each calendar Lease year during the Term of this Lease shall be determined in the following manner ("Tenant's Proportionate Share"), subject to equitable adjustments at Landlord's discretion pursuant to Section 9.3:

Article I Floor Area
in Demised Premises

= Tenant's Proportionate Share

Article I Floor Area
in the Landlord's Parcel

3.5 **RENT DELINQUENCIES.** Should the Tenant for any reason whatsoever, fail to pay, when the same is due and payable, any Minimum Rent, Percentage Rent, if applicable, and/or Additional Rent (collectively Rent) and should said Rent not be paid within five (5) days of due date, Tenant shall pay a late penalty equal to ten percent (10 %) of total Rent due. In addition, all unpaid Rent shall bear interest from the date due to the date of payment at the rate of six percent (6%) per annum in excess of the prime rate as quoted by Wells Fargo Bank of Denver or any successor thereto, to its best customers, or the highest rate permitted by law, whichever is less. In addition, Tenant shall pay to Landlord a charge equal to Fifty Dollars (\$50.00) for any checks returned for

insufficient funds. In the event of more than one (1) such failure in any calendar year hereunder, Landlord may require Tenant to immediately pay, as advance rental for the last three (3) months of the Term hereof, an amount equal to said last three (3) months Minimum Rent.

ARTICLE IV OPTION

4.1 **OPTION PERIOD.** The Landlord hereby grants and gives to Tenant, at Tenant's option, the right to renew this Lease for option period(s) stated in Article I ("Option Period" or "Option Periods"), provided that the Tenant is not then in default under any provision of this Lease; the same to be subject to all of the terms and conditions of this Lease, and upon the same Terms and conditions provided herein except the Lease Minimum Rent of each Option Period shall be as set forth in Article I hereof.

4.2 **OPTION NOTICE.** Tenant shall not be deemed to have exercised its option to renew for any of the Option Periods unless Tenant shall give Landlord written notice of its intention to exercise its option to renew for any of the Option Periods at least one hundred eighty (180) days prior to the expiration of the then current Term. In the event that Tenant fails to exercise its option to renew for any of the Option Periods prior to said notice date, the option to renew and all subsequent options to renew shall be null, void and of no further force or effect. References herein to the word "Term" shall include any Option Periods if exercised by Tenant.

ARTICLE V CONSTRUCTION OF PREMISES

5.1 **LANDLORD'S OBLIGATIONS.** The Landlord shall cause to be constructed on the Demised Premises all items, if any, designated as Landlord's Work on Exhibit One. If Landlord, for any reason whatsoever, cannot deliver possession of the Demised Premises to Tenant at the Commencement Date of the Term as set forth in Section 2.2(a), this Lease shall nevertheless remain in effect, and Landlord shall not be liable to Tenant for any loss or damage relating thereto; but there shall be a proportionate reduction in Minimum Rent and Additional Rent covering the period between Commencement Date of said Term and the time when Landlord can deliver possession.

5.2 **TENANT'S OBLIGATIONS.** Any and all work defined as Tenant's Work on Exhibit One shall be at Tenant's sole cost and performed in good and workmanlike manner satisfactory to Landlord and free of any liens for labor and/or materials.

5.3 **MECHANICS LIENS.** Tenant shall not permit the interest of Landlord in the Demised Premises or the Shopping Center to be subjected to any mechanics or materialmen's liens, or to any lien of any kind, unless a specific provision to the contrary authorizing in specific terms the creation of such lien or liens is signed by Landlord. Tenant understands that pursuant to Wyoming statute, Landlord shall have the right to post the Demised Premises with a notice of non liability for any lien arising from work performed or materials furnished at the instance of the Tenant, and Tenant agrees to so notify Tenant's subcontractors and suppliers, and to assure that said notice remains posted in a conspicuous place during the entire time in which said work is being performed or material furnished and to notify Landlord immediately of any removal, damage or obstruction to said posted notice. Tenant shall indemnify and hold Landlord harmless as to any and all claims, fees, damages, debts, losses or liability resulting from the work performed or materials furnished at the instance of the Tenant. Further, to insure such

indemnity, Landlord may, at its sole option, require the Tenant to furnish a surety bond written by a licensed insurance company therein guaranteeing Tenant's full and timely performance hereunder in such amount as is prescribed by the Landlord.

5.4 **DISCHARGE OF LIENS.** In the event that Landlord is served with a notice of lien ("Notice of Lien"), or lien is recorded, effecting in any way the Shopping Center as a result of work performed or materials furnished at the instance of the Tenant, and in the event Tenant gives notice to Landlord within ten (10) days of receipt of Notice of Lien of a good faith dispute with respect to the substance of such claim or lien, Tenant shall immediately provide a security bond or other reasonably acceptable security, sufficient under Wyoming statute to release the lien on the Demised Premises and the Shopping Center. In the event Tenant fails to provide such security Landlord may, at its option (but shall not be obligated to) discharge and pay the amount of the lien claim and bill all costs, expenses and fees attributable thereto (including reasonable attorneys' fees) to Tenant together with interest at the rate of six percent (6 %) per annum in excess of the prime rate as quoted by the Wells Fargo Bank of Denver, or any successor thereto, to its best customers, or the highest rate permitted by law, whichever is less, and Tenant shall pay Landlord the amount billed upon demand.

5.5 **REQUIREMENT OF LAW.** All Tenant's Work to be performed by Tenant at the Shopping Center shall conform with all applicable law, rules, regulations, orders, and requirements of all governmental bodies having jurisdiction and of the local board of fire underwriters or other local body exercising similar functions. Landlord consents to variations in plans and specifications being made by Tenant without prior approval by Landlord, in order to conform the plans and specifications to such laws, rules, regulations, orders and requirements, provided any such variation is not substantial.

5.6 **OWNERSHIP.** Unless otherwise provided for herein, Landlord shall own all improvements constructed as Landlord's Work and as Tenant's Work hereunder and all fixtures attached to the Demised Premises, although as part of the consideration for this Lease, Tenant agrees to insure and maintain portions of same, as hereinafter provided.

ARTICLE VI

USE OF PREMISES

6.1 **TENANT'S USE.** During the Term of this Lease, the Demised Premises shall be used solely for the purposes set forth in Article I and for no other purpose without prior written consent of Landlord. The business shall be operated under the trade name set forth in Article I. Tenant will abide by and not violate any exclusive rights granted to any tenants of the Shopping Center.

6.2 **CONTINUED USE.** Tenant agrees to continually occupy the Demised Premises and operate the business described above at the Demised Premises during the entire Term of this Lease and any renewals thereof. Said business shall be conducted with the highest degree of quality attributable to business operations of a similar nature and manner within the Shopping Center metropolitan area. Tenant shall keep the Demised Premises open for business continuously, during the hours and days of operation as required by Landlord.

6.3 **COMPLIANCE WITH LAWS AND REGULATIONS.** Tenant covenants and agrees that at all times during the Term hereof it will maintain and conduct its business insofar as the same relates to the

occupancy of the Demised Premises, in such a manner and under such regulations that are in strict compliance with any and all applicable governmental and/or quasi-governmental laws, rules, regulations and orders, as well as any and all applicable provisions of insurance underwriters at the Demised Premises and the Shopping Center. Tenant shall indemnify Landlord, Landlord's insurer, and the property of Landlord against any and all claims or losses or actions or causes of action resulting from Tenant's failure to comply with said laws, rules, regulations and orders and underwriting provisions.

6.4 **COMPETITION.** During the Term of this Lease, neither the Tenant nor any person, firm, or corporation directly or indirectly controlling, controlled by or under common control with the Tenant shall directly or indirectly operate, manage, conduct, or have any financial interest in any commercial establishment which is operated for a purpose similar to that set forth in Article I, hereof, within a three (3) mile radius of the Shopping Center (determined by a straight line), save and except as to any such commercial establishment in existence at the date of this Lease. In the event of a non-compliance with the above and foregoing provision, rental during such non-compliance period shall be the then current Minimum Rent plus one hundred percent (100%) thereof, Additional Rent and Percentage Rent if applicable.

6.5 **CHANGE OF NAME.** Tenant agrees not to change the name of the business operated in the Demised Premises without the consent of Landlord. Landlord has the sole right to approve the name of the business to be conducted on the Demised Premises prior to the commencement of operation by Tenant.

6.6 **AFFIRMATIVE COVENANTS OF TENANT.** Without in any way limiting or restricting other covenants of Tenant elsewhere in this Lease contained, the Tenant affirmatively covenants and agrees as follows:

- (a) Tenant shall neither permit nor suffer any conduct, noise, odor or other nuisance about said Demised Premises to annoy or disturb any persons occupying adjacent premises or Common Area;
- (b) Tenant shall keep the Demised Premises including all service and/or loading areas for the Demised Premises free from all litter, dirt and obstructions, and shall not advertise with the Shopping Center or Common Area except as designated by Landlord;
- (c) Tenant shall arrange for and accept deliveries only at such times, in the areas, and through the entrances designated for such purpose by Landlord;
- (d) Tenant shall keep said Demised Premises clean and in the sanitary condition required by ordinance, and regulations of any governmental or quasi-governmental unit having jurisdiction or as may be required by Landlord;
- (e) Tenant shall neither permit nor suffer the Demised Premises, or the walls or floors thereof, to be endangered by overloading;
- (f) Tenant shall not use or permit the Demised Premises to be used for any purpose or purposes other than that set forth in Article I hereof;

(g) Tenant will use its best effort to control its patrons from drunken, unruly or obnoxious behavior; and

(h) Tenant shall not protest any application by Landlord or any other Tenant who may apply for a liquor license for use within the Shopping Center.

(i) Tenant shall not disclose the material provisions of this Lease, including, but not limited to, Minimum Rent, Percentage Rent or Additional Rent to any other tenant of the Shopping Center or any third party except representatives of Tenant who acknowledge this covenant and agree to be bound by same or unless disclosure is required by law. This prohibition shall not apply to requests made by Landlord, its lenders or prospective purchasers. Violation of this covenant shall constitute a material default of the Lease in which event Landlord, in addition to all other remedies provided hereunder for default, shall have the right to seek from Tenant reimbursement for any and all damages incurred by Landlord resulting directly or indirectly from such violation.

ARTICLE VII

MAINTENANCE AND REPAIRS

7.1 **LANDLORD'S MAINTENANCE AND REPAIRS.** The Landlord hereby, subject to reimbursement from tenants of the Shopping Center for Common Area expenses provided for hereinafter, agrees to keep in good order, condition, and repair the roof, exterior, foundations, and structural portions of the Demised Premises (excluding store front, store front signs, doors, glass and glass windows) including service pipes, lines and mains leading to and from the Demised Premises, save and except for any damage thereof caused by any act or negligence of the Tenant, its agents, employees, licensees or any other party working at or under its direction. The Landlord shall not be responsible to make any plumbing, electrical, or mechanical repairs or replacements or other improvement or repairs of any kind whatsoever at the Demised Premises, save and except as to those which are specifically set forth in this Lease. It is expressly understood that any repairs or maintenance performed by the Landlord may be made, after prior notice thereof, at the Demised Premises or within Common Area during ordinary business hours so as not to unreasonably cause the Landlord to incur any additional expenses for labor and/or materials. No exercise by the Landlord of any rights or duties herein prescribed shall entitle the Tenant to any damage for any injury or inconvenience occasioned thereby nor to any abatement of Rent.

7.2 **LANDLORD'S LIABILITY.** Landlord shall not be liable to Tenant for any damage or injury to Tenant, Tenant's property, Tenant's invitees and customers, or Tenant's invitee's or customer's property occasioned by any defect of plumbing, heating, air cooling, air conditioning equipment and ducts, electrical wiring or insulation thereof, gas pipes, or steam pipes, or from broken steps, or from the backing up of any sewer pipe, or from the bursting, leaking or running of any tank, tub, washstand, toilet, or waste pipe, drain or any other pipe or tank in, on or about the Demised Premises, or from the escape of steam or hot water from any boiler, radiator, or any other permanent devices, or for any such damage or injury occasioned by water being on or coming through the roof, stairs, walks or any other place on or near the Demised Premises unless Landlord neglects or fails to make necessary repair required of it to be made under the terms of this Lease after receipt of written notice thereof from Tenant, or for any such damage or injury done or occasioned by the falling of any fixture, plaster, or stucco, or for any such damage or injury caused by wind or by the act, omission, or negligence of the tenants, occupant of the same building or of adjacent buildings, occupants of the Shopping Center, or contiguous property or any other person.

7.3 **TENANT'S MAINTENANCE AND REPAIRS.** Tenant agrees that, from and after the date that possession of the Demised Premises is delivered to the Tenant, and until the end of the Term (including any renewal) hereof, it will be responsible for all repairs, maintenance and replacements to the Demised Premises other than those specifically required to be performed by Landlord in Section 7.1, including but not limited to the interior and exterior portions of all doors, windows, plate glass, locks, frames, hardware and showcases surrounding and incorporated into the Demised Premises; the mechanical, plumbing, heating, air conditioning, ventilating and electrical equipment and systems (even if located on the exterior of the Demised Premises); partitions, and all other fixtures, appliances and facilities furnished by Landlord or Tenant, including signage. Furthermore, Tenant shall be responsible for maintaining the HVAC system. Tenant shall retain, at its sole cost and expense, a licensed service to perform all repairs and maintenance of the HVAC system, including preventative maintenance performed at least quarterly during the Term and any extended Term of this Lease. Landlord retains the right to approve any service selected by Tenant and Landlord may require Tenant to utilize a service selected by Landlord. In the event Tenant fails to pay when due and before becoming delinquent, any charges, fees or costs of said service (whether selected by Tenant or Landlord) Landlord may (but shall not be required) to pay such charges, fees or costs in which event Tenant shall within three (3) days after notice thereof from Landlord reimburse Landlord for such charges, fees or costs incurred together with a service charge imposed by Landlord of ten percent (10%) thereof. Tenant shall not, however, be responsible for repair of any damage caused by any gross negligence of Landlord, its employees or agents. Tenant shall be required to pay for any structural repair or alterations which may be required by governmental rules, orders or regulations. During reasonable business hours Landlord may inspect the Demised Premises to ensure Tenant's compliance with the above and foregoing requirements. By entry hereunder, Tenant accepts the Demised Premises as being in good and sanitary order, condition and repair.

7.4 **SURRENDER OF PREMISES.** At the expiration or termination of the Lease, Tenant shall surrender the Demised Premises in the same condition as it existed on the Commencement Date of this Lease after completion of all Landlord's Work if any, and all Tenant's Work, ordinary wear and tear excepted. All Landlord's Work, Tenant's Work and fixtures which have become attached shall be part of the Demised Premises except trade fixtures. In the event Tenant fails to remove any trade fixtures, furniture, equipment or other items of personal property from the Demised Premises at the expiration or termination of the Lease Term, Landlord may, at its option, dispose of or store such items at Tenant's expense. Further, within ninety (90) days prior to the expiration of the Term, Landlord shall, during reasonable business hours, have the right to show the Demised Premises to third parties for the purposes of again leasing same. Notwithstanding the provisions above to the contrary, Landlord reserves the right to direct Tenant to remove any or all of the Landlord's Work and/or Tenant's Work and repair any damage caused thereby at Tenant's sole cost and expense which removal shall be completed no later than thirty (30) days after receipt of Landlord's notice. Landlord shall provide to Tenant any such notice to remove no later than thirty (30) days after the expiration or termination of the Lease.

ARTICLE VIII

TAXES

8.1 **ASSESSMENT OF THE SHOPPING CENTER.** Landlord agrees to cause the appropriate taxing authority to assess the real property under the Landlord's Parcel, as defined in Article I, together with all structures from time to time erected thereon. Said Taxes (as hereinafter defined) shall be based upon the legal description contained in Exhibit "B" which may from time to time be reduced as a result of ground leases

subject to separate taxation or takings by public authorities, or increased by additional parking areas or other real property which may from time to time be included in the Shopping Center.

8.2 **TENANT'S ADDITIONAL RENT.** Tenant shall pay in each tax year during the Term of this Lease as Additional Rent, Tenant's Proportionate Share of the real estate and ad valorem taxes including but not limited to, special assessments for the Shopping Center ("Taxes").

8.3 **MANNER OF PAYMENT.** All charges as required in this Article shall be paid by Tenant in monthly installments in such amounts as are estimated and billed by Landlord, with each such installment being due on the first day of each month.

Within one hundred twenty (120) days of receipt of the tax bill for each tax year, Landlord shall endeavor to make available for Tenant's inspection Landlord's records relating to said Taxes for such preceding period, and Landlord shall either bill Tenant for any deficiency, which amount shall be paid to Landlord within ten (10) days after receipt of such bill, or will credit any over payment to Tenant's continuing Additional Rent payment due over the remaining balance of the calendar year, as the case may be, to correct for any difference between the amount estimated and billed by Landlord versus Landlord's actual costs. Landlord's failure to provide Tenant with such information or bill shall not relieve Tenant of its obligation to pay Tenant's Proportionate Share of such Taxes incurred during the initial and any extended terms of this Lease.

For the tax year in which this Lease commences or terminates, the provisions of this Section shall apply, but Tenant's liability for its share of any Taxes for such year shall be subject to a pro-rata adjustment, based upon the number of days of said tax year subsequent to the commencement date or prior to the termination date.

"Tax year" means the twelve (12) month period established as the real estate tax year by the taxing authorities having lawful jurisdiction over the Shopping Center.

8.4 **OTHER TAXES.** Tenant shall pay all Taxes assessed on its sales, trade fixtures, employees, equipment or personal property in or upon the Demised Premises and also general license, sales, use or franchise Taxes, if any, which may be required for the conduct of Tenant's business. If said Taxes are not separately assessed and billed, but are included in aggregate with Landlord's tax bill, Tenant shall reimburse Landlord for such cost in a manner similar to that provided in Section 8.3 hereof.

8.5 **TAX LIABILITY.** For purposes of this entire Article VIII, Tax liability, and Tenant's Additional Rent based thereon, shall include all rent taxes, other taxes, levies, fees, assessments and similar charges (hereinafter collectively referred to as "Taxes") payable (other than Landlord's state and federal income taxes) whether or not now customary or within the contemplation of the parties hereto; provided such taxes are levied by governmental or quasi-governmental authority upon the Demised Premises or the Landlord's Parcel. In addition, Tenant's Additional Rent shall include the reasonable cost (including fees of attorneys, consultants and appraisers) for any negotiation, contest or appeal pursued by Landlord in an effort to reduce any Tax liability.

In the event that it shall not be lawful for Tenant and Landlord to apportion such future Taxes, if any, in accordance with the provisions of Section 8.2 hereof, then in that event, the Minimum Rent payable to Landlord under this Lease shall be revised to net to Landlord the same net rental after imposition of any such future

Tax upon Landlord as would have been payable to Landlord prior to the imposition of any such Tax. If the aggregate amount of Taxes paid by Landlord for the Shopping Center is reduced pursuant to C.R.S. 39-3-124, then for purposes of this Section, the property Tax amount after giving effect to such reduction shall be grossed up to reflect the amount of the property Tax as if it had not been reduced pursuant to C.R.S. 393-124.

ARTICLE IX COMMON AREA

9.1 **DEFINITION OF COMMON AREA.** The term common area ("Common Area") shall designate any property owned, leased, used or managed by Landlord or Landlord's managing entity and operated for the benefit of the Shopping Center. The term Common Area shall designate those portions of the Shopping Center which are available for the use and benefit of all tenants of the Shopping Center, their guests, customers, invitees, concessionaires and licensees, or for the use and benefit of the Shopping Center as a whole, and shall include, but not be limited to, all parking, mall areas, walkways, landscaping, driveways and Shopping Center signs. The general public (not customers, guests or invitees) shall have no rights in and to the Common Area. In addition, although the roofs, underground utilities and other structural elements of the buildings in the Shopping Center are not literally part of the Common Area, they will be deemed to be so included for purposes of (i) Landlord's ability to prescribe rules and regulations regarding same, and (ii) their inclusion for purposes of Common Area Operating Costs (as hereinafter defined) and repair or replacement reimbursement provided for hereafter.

9.2 **PARKING AREA AND LIGHTING.** Landlord shall cause all parking areas within the Shopping Center, to be maintained in good repair and clean condition, and reasonably clear of ice and snow during the Term of this Lease. Lighting in said areas shall be reasonably adequate.

Landlord agrees that Tenant may, during the Term hereof, subject to the provisions hereof, have the nonexclusive right to use all parking areas within the Shopping Center for the parking of such automobiles of the Tenant, its officers, agents and employees, and its customers while shopping in the Shopping Center; but it is understood and agreed that Landlord shall have the right to change from time to time the location and direction of parking lanes and drives, or to change the number of designated parking spaces.

Tenant agrees to cause its employees to park their cars only on such areas as Landlord may from time to time designate as employee parking areas, and such employee parking areas may be located outside the Shopping Center provided the same shall be within a reasonable distance of the Demised Premises. Upon request of Landlord, Tenant shall furnish to Landlord a complete list of the license numbers of all automobiles operated by Tenant, its employees, subtenants, concessionaires, or licensees.

Landlord reserves the right to designate limited time parking, handicap parking or specific tenant use only parking from time to time.

9.3 **COMMON AREA OPERATING COSTS.** The common area operating costs ("Common Area Operating Costs") shall be those of operating and maintaining the Common Area, and the Shopping Center as a whole in a manner deemed by Landlord reasonable and appropriate and for the best interests of the Shopping Center including the costs incurred by Landlord for, but not limited to, utility service, gas, electric, steam, water and sewer in connection with the operation and maintenance of the Common Area and the Shopping Center as

a whole; the cost of all Insurance procured by Landlord pursuant to Section 13.5 in amounts and in such a form as Landlord may deem appropriate for the Shopping Center and the Common Area, including general liability insurance and insurance for those perils normally included in an extended coverage endorsement, rental income insurance, workmen's compensation insurance covering Landlord's personnel, insurance against liability for defamation and claims of false arrest occurring in and about the Common Area, automobile liability insurance and plate glass insurance for glass exclusively serving the Common Area facilities, and other insurance as Landlord may from time to time deem appropriate; all costs incurred by Landlord for operation of, maintenance of, and repairs and replacement to the Shopping Center, including, without limitation: cleaning and janitorial, snow and ice removal, removal of garbage, trash and debris, landscaping, utility pipe lines, conduits or systems, winterization of common utility lines, lighting, signage, striping, parking areas, driveways, walkways, asphalt, concrete, curbs, gutters and sidewalks, exterior building surfaces, roof and structural portions of the Shopping Center, architectural, engineering, or other third party fees and costs related to the foregoing, sanitary control, drainage and detention facilities, heating, ventilation and air conditioning systems; wages and salaries (including employees benefits); management fees; the cost of material, equipment and supplies; maintaining and depreciation of machinery and equipment; costs to direct parking, regulate traffic and police the Common Area, monitor fire and security alarm systems; personal property taxes; costs incurred by Landlord under Section 7.1, expenditures for government-mandated capital improvements and compliance with environmental laws and regulations; costs of maintaining appropriate reserves for anticipated expenditures; and administrative costs equal to fifteen percent (15%) of the total cost of operating and maintaining all aspects of the Common Area and the Shopping Center as a whole, and including costs that may require capitalization for tax reporting purposes. Landlord shall have the right to equitably allocate some or all of the Common Area Operating Costs among the different tenants of the Shopping Center. Landlord may elect to amortize the cost of certain improvements, repairs or replacements over a period of years as reasonably determined by Landlord, including interest thereon at a rate determined by Landlord not to exceed 8% percent per annum. In the event, this Lease shall terminate for any reason prior to the full reimbursement to Landlord of said amortized cost of improvements, repairs or replacements, then Tenant's Proportionate Share of the cost of improvements, repairs or replacements which have not yet been reimbursed (i.e. the unamortized balance) shall become due and payable in full in the last year of tenancy, payable in equal monthly installments over such last year. It is understood that Tenant's obligation to reimburse said costs of improvements, repairs or replacements accrues over the then term of this Lease commencing with the origination of the amortized cost of improvements, repairs or replacements regardless of the manner in which Landlord may allocate said cost of improvements, repairs or replacements for purposes of collection of reimbursements.

9.4 ADDITIONAL RENT. Since the operation, maintenance and preservation of the Common Area constitutes a benefit to Tenant, as Additional Rent hereunder, the Tenant shall, during the Term of this Lease, be responsible for the payment of a sum equal to its appropriate share of Common Area Operating Costs. The Shopping Center is encumbered by a declaration of easement and restrictive covenants. The maintenance costs for those areas are part of the Common Area Operating Costs. Tenant's Proportionate Share of Common Area Operating Costs shall be the percentage set forth in Article I, as computed in Section 3.4 hereof.

In the event Tenant begins the Term of this Lease or it terminates after the first of a calendar year, it shall pay only a pro-rata share of that annual Additional Rent due based upon the actual number of respective days of the first and last years of this Lease.

9.5 **MANNER OF PAYMENT.** The charge required pursuant to Section 9.4 hereof shall be paid by Tenant in monthly installments in such amounts as estimated and billed by Landlord at the beginning of a twelve (12) month period commencing and ending on dates designated by Landlord, each such installment being due on the first day of each month. Within one hundred twenty (120) days after the end of each twelve (12) month period Landlord shall endeavor to make available for Tenant's inspection Landlord's records relating to Common Area Operating Costs for such preceding period, and Landlord shall either bill Tenant for any deficiency, which amount shall be paid to Landlord within ten (10) days after receipt of such bill, or will credit any over payment to Tenant's continuing Additional Rent payment due over the remaining balance of the calendar year, as the case may be, to correct for any difference between the amount estimated and billed by Landlord versus Landlord's actual Common Area Operating Costs ("CAM Reconciliation"). Landlord's failure to provide Tenant with such information or bill shall not relieve Tenant of its obligation to pay Tenant's Proportionate Share of Common Area Operating Costs incurred during the initial and any extended Term of this Lease. Tenant shall have the right at its sole cost and expense to inspect Landlord's records relating to Common Area Operating Costs for a period of six (6) months from the date that Landlord has provided the CAM Reconciliation bill or credit. If Tenant has not exercised its right to inspect Landlord's records within the six (6) month period, Tenant shall be deemed to be in agreement with the CAM Reconciliation.

9.6 **PROHIBITED USE OF COMMON AREA.** Tenant may not display or sell merchandise or allow portable signs, devices or any other objects to be stored or to remain outside the defined exterior walls or roof and permanent doorways of the Demised Premises. In addition, Tenant shall not solicit by handbills, bumper stickers or other advertising devices, in any manner, in the parking areas or Common Area of the Shopping Center. No advertising medium may be used by Tenant which can be heard or experienced outside the Demised Premises. Tenant shall not access any roof areas nor make any roof penetration without Landlord's prior written consent. In the event Landlord consents to a roof penetration it shall have the right to require Tenant to utilize only a qualified contractor selected or approved by Landlord.

ARTICLE X

UTILITIES

10.1 **CHARGES.** Tenant shall pay for all utility services, including gas, electricity, domestic water, sewer, hot water for heating and ventilating, chilled water for cooling and ventilating the Demised Premises and all other utility services furnished to the Tenant for use in the Demised Premises or to operate any of Tenant's signs. In the event Landlord shall elect to supply any one or more of the aforementioned services, Tenant agrees to pay to Landlord monthly as a separate charge such amount as shall be due in accordance with the rates as established from time to time in the then current schedule of rates of Landlord for supplying said utilities, but in no event shall said rate exceed that for which Tenant would be charged should it obtain any of said services directly from a third party supplier thereof licensed under law to furnish same.

10.2 **GARBAGE AND REFUSE COLLECTION.** All garbage and refuse shall be kept in the kind of containers designated by Landlord and shall be placed outside of the Demised Premises prepared for processing and/or collection in such manner and at such times and places specified by Landlord.

ARTICLE XI
FIXTURES, SIGNS AND ALTERATIONS

11.1 **FIXTURES.** All fixtures installed by Tenant shall be new unless otherwise approved in writing by Landlord. Said fixtures shall include, but shall not be limited to, all trade fixtures, and those items designated as Tenant's Work in Exhibit One.

11.2 **SIGNS.** Tenant shall not erect any exterior sign or any interior window or door signs visible from the exterior of the Demised Premises without first obtaining the written consent of the Landlord. Landlord retains the right to approve all aspects of any signage including, but not limited to, size, shape, design, colors and type. Tenant shall provide Landlord with a complete rendering of the signage prior to the commencement date of this Lease, or if changes are proposed to the signage during the Term of this Lease then prior to installation or construction. The fact that certain types, sizes, shapes or colors of signs have been allowed in the past for other tenants of the Shopping Center shall not bind Landlord to the same criteria for approval of Tenant's signage. Each Tenant shall be entitled to one exterior sign for the Demised Premises. All such signs must be designed, constructed and maintained in accordance with all governmental rules and regulations at Tenant's expense. Any changes to signage during the initial and any extended Term of this Lease shall be subject to these same requirements.

In the event Landlord, in its sole discretion, shall elect to renovate and/or remodel all or part of the Shopping Center, in order to facilitate any such renovations and/or remodeling (including Tenant's façade): (i) Tenant, upon request by Landlord and at Tenant's sole cost and expense, shall remove any and all of Tenant's signs and replace same with a new sign or signs in conformity with the uniform signage criteria of the new façade ("Tenant Sign Work") If Tenant shall fail or refuse to perform the Tenant Sign Work as required in (i) above, Landlord shall have the right to perform the Tenant Sign Work on Tenant's behalf at Tenant's sole cost and expense, it being acknowledged by Tenant that such cost shall be deemed Additional Rent. At the Expiration Date or earlier termination of the Lease, Tenant shall remove all of its exterior signs from the storefront, fascia and/or canopy and shall repair all damage caused by the initial installation and subsequent removal of such signage.

11.3 **ALTERATIONS.** Tenant may, from time to time during the Term, make, at its own cost and expense, any alterations or changes in the interior of the Demised Premises in a good and workmanlike manner in compliance with all applicable requirements of law, provided Tenant follows the notice procedure and obtains Landlord's consent where required, all in accordance with Section 11.5 hereof. Landlord agrees to cooperate with Tenant for the purpose of securing necessary permits for any changes, alterations or additions permitted under this Section without expense to the Landlord. Upon completion of such alterations, Tenant shall present to Landlord a copy of the endorsement to Tenant's fire and extended coverage insurance policy which endorsement shall incorporate said alterations into the policy. All cost of any such work shall be paid promptly by Tenant so as to prevent the assertion of any liens for labor or materials. Tenant agrees to advise Landlord in writing of the date upon which such alterations will commence in order to permit Landlord to post notice of non-responsibility in accordance with Section 5.3 hereof. Upon the expiration or sooner termination of the Term hereof, Tenant shall, upon written demand by Landlord, given no later than thirty (30) days after the end of the Term, at Tenant's sole cost and expense, forthwith and with all due diligence, remove any alterations, additions, or improvement made by Tenant, designated by Landlord to be removed, and Tenant shall, forthwith and with all due diligence, at its sole cost and expense, repair any damage to the Demised Premises caused by such removal.

11.4 **WIRELESS INTERNET.** Landlord agrees that Tenant may install customary wireless internet services and technology ("Wireless Internet") within the Demised Premises, provided that:

(a) all equipment (including all antennas, servers, wiring and other similar items) for such Wireless Internet is contained solely within the Demised Premises, and is installed in accordance with all the terms and conditions of this Lease;

(b) such Wireless Internet is limited to transmitting within the Demised Premises and any such Wireless Internet signal does not emit or transmit beyond the Demised Premises (in the event that such signal transmits beyond the Demised Premises, Landlord reserves the right to restrict the same to the extent permitted by applicable law);

(c) without limiting the provisions of Section 11.4(a) above, the equipment serving the Wireless Internet, as well as the installation and operation of the same, complies at all times with all applicable laws; and

(d) the emissions from such Wireless Internet do not create interference with equipment within the Shopping Center installed prior in time to the installation of the Wireless Internet.

Tenant shall operate any Wireless Internet at its sole risk, and Landlord shall have no liability therefor (including, without limitation, any liability for interference), and except to the extent caused by the gross negligence or willful misconduct of Landlord, Tenant shall indemnify, defend, and hold Landlord harmless from any claims by any other tenants or other users in the Shopping Center for any interference that the Wireless Internet may cause to such tenants' or other users' operations.

11.5 **NOTICE TO LANDLORD.** Prior to the initiation of any alterations, Tenant shall give Landlord written notice thereof and specify the work to be performed in reasonable detail and the names of the contractors and materialmen to be utilized. After receipt of said notice, Landlord shall have a reasonable period of time during which it shall make a determination, in its sole discretion, as to whether or not the proposed work would create a structural or design change at the Demised Premises. Tenant shall provide Landlord upon request with any further information reasonably necessary for such determination by Landlord, and Tenant shall not commence work or accept materials prior to receiving written notice of Landlord's determination. If Landlord determines that the proposed work would create a structural or design change, then the same must be approved in writing by Landlord prior to the commencement of any work or the delivery of any materials therefor.

ARTICLE XII

INSURANCE/INDEMNIFICATION

12.1 **TENANT'S LIABILITY INSURANCE.** Tenant shall, during the entire Term hereof, keep in full force and effect insurance upon all glass and plate glass in the Demised Premises and a policy of public liability and property damage insurance with respect to the Demised Premises, and the business operated by Tenant and any sublessees with respect to the Demised Premises, in which the limits of public liability shall not be less than \$1,000,000 per person and \$2,000,000 per accident and in which the property damage liability shall not be less than

\$500,000. The policy shall name Landlord and, if necessary, Landlord's lender, as additional insured, and shall contain clauses that losses shall be payable notwithstanding any act or negligence of the insured which might otherwise result in forfeiture of said insurance, and that the insurer will not cancel or change the insurance without first giving the Landlord thirty (30) days prior written notice. The insurance shall be with an insurance company approved to do business in Wyoming and reasonably acceptable to Landlord. Tenant shall deliver a copy of the policy or a certificate of insurance to Landlord prior to taking possession of the Demised Premises, and a renewal certificate at least thirty (30) days prior to the expiration of any policy Term.

12.2 TENANT'S EXTENDED INSURANCE COVERAGE. Tenant shall carry insurance against fire and such other risks as are from time to time included in standard extended coverage insurance for the full insurable value of all improvements provided by Tenant, including Tenant's Work. Tenant shall also carry said insurance for the full insurable value of Tenant's merchandise, trade fixtures, furnishings, wall covering, carpeting, drapes, equipment, doors, windows, HVAC equipment and all items of personal property of Tenant located on or within the Demised Premises. Any insurance policies required to be carried pursuant to this paragraph shall name Landlord, and if required, Landlord's lender as an additional insured, and Tenant shall furnish Landlord evidence of such insurance coverage. Such insurance policies may not be modified or terminated without at least thirty (30) days advance notice to Landlord.

12.3 LANDLORD'S INSURANCE COVERAGE. Landlord shall, subject to reimbursement from tenants of the Shopping Center for Common Area Operating Costs, carry (i) fire and extended coverage insurance, insuring the improvements constructed by Landlord upon the Shopping Center (except for those portions of the Shopping Center which may be insured by other tenants), including the improvements upon the Demised Premises provided as Landlord's Work, for not less than the amount required by Landlord's mortgagee, and (ii) such commercial general liability insurance (sometimes known as broad form comprehensive general liability insurance) insuring Landlord against liability for bodily injury, property damage, and personal injury arising out of Landlord's ownership, operation, use, or occupancy of the Shopping Center (collectively "Landlord's Insurance").

12.4 ADDITIONAL RENT. As to Landlord's Insurance provided for in Section 12.3, Tenant shall pay as Additional Rent hereunder, Tenant's Proportionate Share of Landlord's premium for the Landlord's Insurance coverage required under Section 12.3 above. Tenant's Proportionate Share shall be the percentage set forth in Article 1, as computed in Section 3.4.

12.5 PROTECTION FROM SUBROGATION. To the full extent permitted by applicable insurance policies without affecting coverage, and anything in this Lease to the contrary notwithstanding, neither Landlord nor Tenant shall be liable to the other for any business interruption or any loss or damage to property or injury to or death of persons occurring on the Demised Premises, the Shopping Center or the adjoining properties, sidewalks, streets or alleys, or in any manner growing out of or connected with Tenant's use or occupation of the Demised Premises, or the condition thereof, sidewalks, streets or alleys adjoining, caused by the negligence or other fault of Landlord or Tenant or of their respective agents, employees, subtenants, licensees or assignees to the extent that such business interruption or loss or damage to property or injury to or death of a person is covered by or indemnified by proceeds received from insurance carried by the other party (regardless of whether such insurance is payable to or protects Landlord or Tenant or both) or for which such party is otherwise reimbursed; and Landlord and Tenant each hereby respectively waive all rights of recovery against the other, its agents, employees, subtenants, licensees and assignees, for any such loss or damage to property or injury to or death of persons to the extent the

same is covered or indemnified by proceeds received from any such insurance, or for which reimbursement is otherwise received. Landlord and Tenant shall use best efforts to have their respective policies of insurance contain a waiver of subrogation provision incorporating the above covenant and providing that the insurance shall not be invalidated by the insured's written waiver prior to a loss of any or all right of recovery against any party for any insured loss. It is expressly understood that Landlord shall not be liable to Tenant for any damages incurred by the latter as a result of the above and foregoing events: save and except as to any such damage caused by the willful or wanton conduct of Landlord, its agents or employees, provided such damages are not recoverable by Tenant pursuant to the insurance policies required to be provided by Tenant under this Lease or otherwise.

12.6 **ADDITIONAL HAZARDS.** Tenant covenants and agrees that it will not do or permit anything to be done in or upon the Demised Premises or bring in anything or keep anything therein, which shall cause the cancellation of Tenant's or Landlord's respective insurance policies, or increase the rate of insurance on the Demised Premises or on the other buildings located in the Shopping Center above the standard Shopping Center rate on said premises and buildings. Tenant further agrees that in the event it shall do anything to so increase the insurance rate, Tenant shall promptly pay to Landlord upon demand any such increase resulting therefrom, which shall be due and payable as Additional Rent hereunder. At Tenant's request, Landlord shall make available for Tenant's inspection during regular business hours, all documents pertaining to Landlord's calculation of Tenant's Additional Rent required under this Section. Said Additional Rent shall be due and payable as billed by Landlord.

12.7 **NOTICE.** Tenant shall give immediate written notice to Landlord and Landlord's mortgagee of any damage caused to the Demised Premises by fire or other casualty; or of any cancellation or reduction of Tenant's insurance coverage required pursuant to this Lease.

12.8 **INDEMNIFICATION.** Except for claims arising solely out of the willful or grossly negligent act of Landlord, the Tenant shall indemnify, defend and hold harmless the Landlord, its managers, members, agents, employees or its representatives (collectively the "Landlord Parties") at the Tenant's expense, against all claims, expenses, and liabilities incurred, including reasonable attorney's fees, in connection with loss of life, personal injury, and/or damage to property arising out of any occurrence in, upon or at the Demised Premises or the Common Areas of the Shopping Center (including entering or leaving same), or the occupancy or use thereof by Tenant, or occasioned wholly or in part by any act or omission of Tenant, its agents, employees, contractors, sublessees, concessionaires, licensees, invitees or customers. Tenant further covenants and agrees that if any action, suit, or proceeding is brought against any of the Landlord Parties by reasons of the foregoing, Tenant shall, upon notice from Landlord, at Tenant's sole cost and expense, defend such Landlord Parties in any such action, suit or proceeding by counsel chosen by Landlord. The foregoing indemnity shall survive the expiration or termination of this Lease, and shall continue in full force and effect so long as the possibility of such liability, claim or cost exists.

ARTICLE XIII **DESTRUCTION AND RESTORATION**

13.1 **RESTORATION OPTION IF MORE THAN 30% DAMAGED.** If the Demised Premises shall be damaged to the extent of thirty percent (30%) or more of the cost of replacement thereof, or damaged by any uninsured casualty, Landlord shall have the option to rebuild or terminate this Lease to be exercised by notice to Tenant given not more than one (1) year from the date of such damage. If Landlord elects to rebuild, then Landlord shall, at its expense, proceed with as much of the restoration of the Demised Premises as was included

in Landlord's Work provided for in Exhibit One. All repairs and restorations of the Demised Premises not included in Landlord's Work shall be performed by Tenant in conformance with Exhibit One. The parties shall promptly commence and diligently proceed with their restoration obligations hereunder.

13.2 **RESTORATION OPTION IF LESS THAN 30% DAMAGED.** If the Demised Premises shall be damaged to the extent of less than thirty percent (30%) of the cost of replacement by fire or other casualty covered by Landlord's Insurance during the Term of this Lease, except for the last one (1) year of this Lease, then the parties shall restore the Demised Premises in accordance with the original obligations contained in this Lease, provided however, in no event shall Landlord be required to pay for any costs which are not covered by Landlord's Insurance or reimbursable as a Common Area Operating Cost. If such an event occurs during the last one (1) year of this Lease, then Landlord shall have the option to rebuild or terminate this Lease to be exercised by notice to Tenant given not more than sixty (60) days from the date of such damage.

13.3 **TOTAL DESTRUCTION.** In the event of total destruction of the Demised Premises, Tenant's Minimum Rent shall completely abate from the date of such destruction and the Percentage Rent, if applicable, shall be prorated to the date of such destruction. If Landlord elects to rebuild as aforesaid, Tenant's Minimum Rent shall completely abate from the date of such destruction until one hundred twenty (120) days after the date when Landlord notifies Tenant that the shell of the Demised Premises is ready for commencement of Tenant's Work, or upon the day when Tenant opens for business, whichever event shall first occur. If applicable, any Percentage Rent shall be proportionately reduced based on the period of time Tenant is unable to open for business due to such destruction. But, in the event of a partial destruction or damage whereby Tenant shall be deprived of occupancy and use for only a portion of the Demised Premises, then Minimum Rent, and the Percentage Rent shall be equitably apportioned according to the area of the Demised Premises which is unusable by Tenant as reasonably determined by Landlord, until such time as the Demised Premises are repaired or restored as provided herein.

13.4 **LANDLORD'S OPTION.** In the event any portion of the Shopping Center is damaged or destroyed to such an extent that Landlord, in its sole discretion, elects to discontinue operation of the Shopping Center, Landlord may cancel this Lease by giving Tenant notice of its election and this Lease shall terminate and shall become null and void ninety (90) days after such notice.

13.5 **ABATEMENT.** Tenant agrees that during any period of reconstruction or repair of the Demised Premises, it will continue the operation of its business within the Demised Premises to the extent practicable. If Landlord is required to repair and rebuild, then during the period from the occurrence of the casualty until Landlord's repairs are completed, the Minimum Rent set forth herein shall be reduced to such extent as may be fair and reasonable under the circumstances as determined by Landlord; however, there shall be no abatement of the other charges provided for herein.

ARTICLE XIV EMINENT DOMAIN

14.1 **PARTIAL OR TOTAL CONDEMNATION.** If the whole or any part of the Demised Premises or the structure encompassing same shall be taken by any public authority under the power of eminent domain, the Tenant shall have no claim to, nor shall Tenant be entitled to, any portion of any award, for damages or

otherwise. In the event only a portion of the Demised Premises are taken, the Lease shall terminate as to the part taken, and the Rent and other charges herein reserved shall be adjusted for the remainder of the Demised Premises so that the Tenant shall be required to pay for the balance of the Term that portion of the Rent reserved which the value of the part of the Demised Premises remaining after condemnation bears to the value of the Demised Premises immediately prior to the date of condemnation. The Rent and other charges shall be apportioned as reasonably determined by Landlord, but pending such determination the Tenant shall pay at the time and in the manner above provided the Rent herein reserved and all other charges herein required to be paid by the Tenant, without deduction, and upon such determination, the Tenant shall be entitled to credit for any excess Rent paid. If, however, by reason of the condemnation there is not sufficient space left in the Demised Premises for the Tenant to reasonably conduct business; then, in such event, the Lease shall terminate although all damages in the event of condemnation belong to Landlord whether awarded as compensation for diminution in value of the Leasehold or to the fee of the Demised Premises. Nothing herein shall be construed to prevent Tenant to claim and recover from the condemning authority such compensation as may be separately awarded or recoverable by Tenant in Tenant's own right for its leasehold interest, unless such claims would reduce Landlord's claim, in which event such claim of Tenant shall not be allowed.

ARTICLE XV

ASSIGNMENT AND SUBLETTING

15.1 **CONSENT REQUIRED.** Tenant may not assign this Lease and/or sublet the Demised Premises or any part thereof, without in each instance obtaining the prior written consent of Landlord which consent Landlord shall have the right (reasonably or unreasonably) to withhold in its complete discretion. The consent by Landlord to any assignment or subletting may not constitute a waiver of the necessity for such consent to any subsequent assignment or subletting. This prohibition against assigning or subletting shall be construed to include a prohibition against any assignment or subletting by operation of law. If this Lease be assigned, or if the Demised Premises or any part thereof be underlet or occupied by anybody other than Tenant, Landlord may collect Rent from the assignee, under-Tenant or occupant, and apply the net amount collected to the Rent herein reserved, but no such assignment, under-letting, occupancy or collection shall be deemed a waiver of this covenant, or the acceptance of the assignee, under-Tenant or occupant as Tenant, or a release of Tenant from the further performance by Tenant of covenants on the part of Tenant herein contained. Notwithstanding any assignment or sublease, Tenant shall remain fully liable on this Lease and shall not be released from performing any of the terms, covenants, and conditions of this Lease. Tenant shall pay to Landlord any reasonable costs and expenses (including legal fees) incurred by Landlord in connection with such requested assignment or subletting whether granted or not.

15.2 **OWNERSHIP TRANSFER.** For the purposes of this Article an assignment or subletting shall occur when and if twenty-five percent (25%) or more of the Tenant's business ownership or stock if a corporation, shall be in any way transferred or alienated. In such event, this Article XV shall apply.

15.3 **CONSENT CONDITIONED.** Notwithstanding anything else herein contained in this Article, it is specifically agreed that Landlord may attach as a condition to Landlord's written approval of any assignment or sublease by Tenant that Landlord shall be entitled to the receipt of any profit derived by Tenant as a result of such assignment or sublease except for assignments provided for in Section 15.4 below. Such profit is defined as any amounts received by Tenant from its assignee or subtenant in excess of the Minimum Rent required to be paid by Tenant hereunder. Tenant shall deliver all documents relating to any such assignment or subletting to

Landlord upon Landlord's demand. Such profit shall not include any lump sum payment made to Tenant from its assignee or subtenant in consideration of the transfer of Tenant's business, trade name, inventory, or goodwill; but any amount attributed to Lease assignment or sale of Lease on any document concerning the transaction (including the assignee's tax return) by assignee shall be conclusively established as not attributable to Tenant's business, trade name, inventory or goodwill and therefore shall be included in Tenant's profits as defined herein.

15.4 **MORTGAGE OR FINANCING.** For the purposes of this Article, an assignment or sublease shall occur if Tenant mortgages its Leasehold estate or deeds same in trust or otherwise uses this Lease or the Leasehold estate hereby created as security for a loan or other financing arrangement. In such event, this Article XV shall apply.

15.5 **TRANSFER OF POSSESSORY RIGHTS.** For the purposes of this Article, an assignment or subletting shall occur if Tenant by any method transfers the possession of the Demised Premises, including by way of example and not by way of limitation, management control, franchise, license, et cetera.

ARTICLE XVI

ADDITIONAL CONSTRUCTION

16.1 **ADDED SPACE TO BUILDING.** Landlord reserves the right at any time to build additional space on the building in which the Demised Premises are combined without the consent of Tenant.

16.2 **ADDITIONAL STRUCTURES.** Landlord reserves the right, at any time, to construct additional permanent improvements at the Shopping Center without the necessity of approval so long as said additional permanent improvements do not unreasonably affect parking requirements as established by the applicable governmental rule, regulation or code.

ARTICLE XVII

SECURITY DEPOSIT

17.1 **SECURITY DEPOSIT.** Upon execution hereof, Tenant shall deposit with the Landlord the sum set forth in Article I as a security deposit and the same shall be held by Landlord as security for the performance by Tenant of Tenant's covenants and obligations under this Lease, it being expressly understood that this deposit is not an advance payment of Rent or a measure of Landlord's damages in case of default by Tenant. Upon occurrence of any Event of Default by Tenant, Landlord may, from time to time, without prejudice to any other remedy provided herein or provided by law, use such fund to the extent necessary to make good any arrears of Rent or any other damage, injury, expense, or liability caused to Landlord by such Event of Default and Tenant shall pay to Landlord on demand the amount so applied in order to restore the security deposit to its original amount. Landlord shall have the right to commingle said deposit with other funds of Landlord. Landlord may deliver the funds deposited herein by Tenant to any purchaser of Landlord's interest in the Shopping Center and thereupon Landlord shall be discharged from further liability with respect to such deposit. If Tenant is not then in default, hereunder, any remaining balance of such deposit shall be returned, without payment of interest, by Landlord to Tenant within sixty (60) days after expiration of this Lease.

ARTICLE XVIII
SECURITY AGREEMENT

18.1 **SECURITY AGREEMENT.** In consideration of the mutual benefits arising under this Lease, Tenant hereby grants to Landlord a lien and security interest on all property of Tenant now or hereafter placed in or upon the Demised Premises, and such property shall be and remain subject to such lien and security interest of Landlord for payment of all Rent and other sums agreed to be paid by Tenant herein. The provisions of this paragraph relating to said lien and security interest shall constitute a security agreement under the Uniform Commercial Code ("Code") so that Landlord shall have and may enforce a security interest on all property of Tenant now or hereafter placed in or on the Demised Premises, including but not limited to all leasehold improvements, fixtures, machinery, equipment, furnishings, inventory and other articles of personal property now or hereafter placed in or upon the Demised Premises by Tenant. Tenant agrees to execute as debtor such financing statement or statements as Landlord may now or hereafter reasonably request in order that such security interest or interests may be perfected pursuant to said Code. Landlord may at its election at any time file a UCC-1 Financing Statement or copy of this Lease (or a copy of this Lease with the Rent and other major business terms of this Lease deleted therefrom) as a financing statement. Landlord, as secured party, shall be entitled to all of the rights and remedies afforded a secured party under said Code in addition to and cumulative to the Landlord's liens and rights provided by law or by the other terms and provisions of this Lease.

ARTICLE XIX
TENANT'S DEFAULT

19.1 **EVENTS OF DEFAULT.** The following events shall be deemed to be Events of Default by Tenant under this Lease:

(a) Tenant shall fail to pay when due any installment of Rent or other charges provided herein, or any portion thereof and the same shall remain unpaid for a period of five (5) days after the same has become due; or

(b) Tenant shall for reasons other than those specifically permitted in this Lease, cease to conduct its normal business operations in the Demised Premises or shall vacate or abandon the Demised Premises. Tenant will be deemed to have vacated, closed or abandoned the Demised Premises if it fails to conduct its business on the Demised Premises during regular working hours for a period of more than three (3) consecutive days; or

(c) Tenant shall do or permit to be done anything which creates a lien upon the Demised Premises or the Shopping Center; and does not cause said lien, as to Landlord's interest in the Demises Premises or the Shopping Center, to be released within ten (10) days after written notice from Landlord; or

(d) Any representation or warranty made in writing to Landlord in this Lease or in connection with the making of this Lease, by Tenant or any Guarantor, shall prove at any time to have been incorrect in any material respect when made or becomes incorrect; or

(e) Tenant shall violate any of the provisions of Section 18.1 (Security Agreement);
or

(f) Tenant shall have failed to pay when due any payment obligation, or any portion thereof, owing to Landlord or to Landlord's agent, nominee or attorney-in-fact pursuant to any written agreement or promise by Tenant in connection with this Lease or with the Demised Premises, and the same shall remain unpaid for the period specified in said written agreement or promise, or for five (5) days after due date, whichever period is longer; or

(g) Tenant or any Guarantor shall make an assignment for the benefit of creditors, file a petition in bankruptcy, be adjudicated insolvent or bankrupt or admit in writing the inability to pay debts as they mature, petition or apply to any tribunal for the appointment of a receiver, trustee or similar officer for Tenant or any Guarantor or for a substantial part of the assets of Tenant or any Guarantor, or shall commence any proceeding under any bankruptcy, reorganization, arrangement, readjustment of debt, dissolution or liquidation law or statute of any jurisdiction, whether now or hereafter in effect; or if there shall have been filed any such petition or application, or any such proceeding shall have been commenced against Tenant or any Guarantor, which remains undismissed for a period of thirty (30) days or more; or Tenant or any Guarantor by any act or omission shall indicate their consent to, approval of or acquiescence in any such petition, application or proceeding, or the appointment of a receiver or any trustee or similar officer for Tenant or any Guarantor for any substantial part of any of the property of Tenant or any Guarantor, or shall suffer any such receivership or trusteeship to continue undismissed for a period of thirty (30) days or more; or any judgment, writ, warrant or attachment or execution or similar process shall be issued or levied against a substantial part of the property of Tenant or any Guarantor and such judgment, writ, or similar process shall not be released, vacated or fully bonded within thirty (30) days after its issue or levy; or

(h) Tenant shall have failed to comply with any other provisions of this Lease and shall not cure any failure within ten (10) days, or such longer period of time as may be reasonably required to cure such default, after Landlord, by written notice, has informed Tenant of such noncompliance; or

(i) Tenant shall fail to be open for business during the prescribed hours set forth by Landlord; or

(j) If Tenant shall discuss the Rent rate of this Lease, or any of the business provisions contained in this Lease with any other tenant in the Shopping Center, or any third party without a need to know that information. Individuals who need to know Rent rates are limited to Tenant's accountants, bookkeepers, attorneys and tax preparers; or

(k) Tenant shall fail to submit to Landlord reports pursuant to Section 24.21 hereof or Tenant submits reports which Tenant either knows or should know are inaccurate.

19.2 **LANDLORD'S REMEDIES.** Upon the occurrence of any of the above-lettered Events of Default, Landlord may elect to either (1) terminate this Lease; or (2) terminate Tenant's right to possession only without terminating this Lease, hereinafter referred to as reentry; (3) pursue any of its remedies as a secured party under the Code as enacted in Wyoming and/or specified in Section 18.1 hereof; and/or (4) pursue any other remedy

available at law or in equity. Landlord shall have all remedies provided in this Lease and under governing law. All of the remedies given to Landlord in this Lease or by law shall be cumulative, and the exercise of one right or remedy by Landlord shall not impair its right to exercise any other right or remedy.

In the event of election under (2) above to terminate Tenant's right to possession only, Landlord may, at Landlord's option, proceed to demand possession by notice and proceeding under the forcible entry and detainer law of Wyoming, or forcibly if necessary enter into the Demised Premises and take and hold possession thereof, without such proceeding or entry into possession terminating this Lease or releasing Tenant in whole or in part from Tenant's obligation to pay the Rent hereunder for the full Term. Upon re-entry Landlord may remove all personal property from the Demised Premises and such property may be removed and stored in a public warehouse or elsewhere at the cost of and for the account of Tenant, all without service of notice or resort to legal process and without being deemed guilty of trespass, or becoming liable for any loss or damage which may be occasioned thereby. Upon and after entry into possession without termination of the Lease, Landlord shall use reasonable commercial efforts to relet the Demised Premises, or any part thereof, for the account of Tenant, to any other person, firm or corporation, for such Rent and other charges for such time and upon such terms as Landlord, in Landlord's sole subjective discretion shall determine, but Landlord shall not (i) be required to accept any potential tenant offered by Tenant, or (ii) to observe any instructions given by Tenant about such reletting, or (iii) be obligated to relet the Demised Premises before it leases other space in the Shopping Center. Landlord may make repairs or redecorate the Demised Premises to the extent deemed by the Landlord necessary or commercially reasonable. Notwithstanding any action for possession or reentry into the Leased premises by the Landlord as permitted in this Section 19.2, or termination of this Lease as permitted under this Section 19.2, it is stipulated and agreed that Tenant shall remain liable to Landlord for damages for breach of this Lease and of Tenant's covenant hereunder in an amount equal to the total of the following:

(a) all fixed Minimum Rent, Percentage Rent, if applicable, Additional Rent, Common Area Costs charges, late charges, Additional Rent payable for Taxes, Landlord's Insurance and otherwise, and any and all other charges payable by Tenant hereunder or under other agreements with the Landlord due for the period prior to the date of termination of this Lease or reentry but unpaid, together with additional late charges from due date until paid; PLUS

(b) all costs and expenses incurred by Landlord in connection with reentry and repossession of the Demised Premises, the repair, renovation, remodeling, or redecoration thereof to the same required by this Lease upon termination or as may be necessary for reletting, and any broker's commissions, attorney's fees, and other charges incurred in connection therewith or in connection with reletting the Demised Premises, including attorney's fees, expended in the collection of all rents; PLUS

(c) a sum equal to all Rents which would have been payable hereunder after the date of termination or reentry for the balance of the Term of the Lease had the Lease not been terminated or reentry made, with Percentage Rent if applicable, being calculated as an amount equal to the greater of: (i) the Percentage Rent for the preceding year or portion thereof; or (ii) the average of the Percentage Rent for the preceding three (3) years, together with interest thereon at the rate of six percent (6 %) per annum in excess of the prime rate as quoted by the Wells Fargo Bank of Denver, N.A., or any successor, to its best customers, or the highest rate permitted by law, whichever is less from due date until paid; PROVIDED THAT, in the event the Demised Premises are relet (which reletting shall in no event relieve or release Tenant of or from liability for damages hereunder) for all or any

part of the balance of the original Term hereof, then, for each month during such reletting for which Landlord receives net avails of such reletting, Tenant shall be entitled to a credit against its liability to Landlord for such month in an amount equal to such net avails.

19.3 **BANKRUPTCY.** If, pursuant to the Federal Bankruptcy Act, as it may be amended, Tenant may assign this Lease in disregard of the restrictions provided for herein and in spite of Tenant being in default under the Lease, then Tenant's assignee shall give Landlord adequate assurance of future performance. To give Landlord such adequate assurance, Tenant's assignee shall:

(a) Deposit with Landlord cash security in an amount equal to six (6) month's Minimum Rent plus six twelfths (6/12ths) of the Additional Rent payable under this Lease during the calendar year preceding the assignment. For purposes hereof, Additional Rent shall include Percentage Rent calculated at the highest such Percentage Rent was paid or payable for any one (1) of the last three (3) full Lease years prior to the occurrence of such Event of Default, or, if such occurrence shall occur prior to the completion of three (3) such years, equal to four (4) times the highest of such Percentage Rent paid or payable for any three (3) month period. Landlord shall hold this deposit as a security deposit pursuant to Article XVII of this Lease for the rest of the Lease Term or any renewal term;

(b) To the extent necessary to compensate Landlord for any damage from a default described herein, pay Landlord any money or give Landlord any property intended as payment to Tenant for the assignment of the Lease, provided, brokerage commissions, reasonable leasing expenses, and reasonable amounts designated by the assignee for the purchase of any of Tenant's equipment in the Demised Premises shall be deducted from such payment; and

(c) Have a minimum net worth (excluding goodwill) in an amount not less than two (2) times the sum of all annual Minimum Rent plus Additional Rent for the calendar year preceding the assignment.

Furthermore, the trustee, or assignee, must demonstrate to the reasonable satisfaction of Landlord that it has sufficient background in retail sales in shopping centers of comparable size to the Shopping Center and meets all other reasonable criteria of Landlord.

19.4 **COSTS, EXPENSES AND ATTORNEY'S FEES.** If one party is required to seek legal counsel, for collection or to commence litigation or arbitration in order to enforce the covenants and agreements in this Lease, the party prevailing in such collection, litigation or arbitration shall have the right to and shall otherwise be awarded reimbursement from the other party of all reasonable costs, expenses and attorney's fees.

ARTICLE XX

ESTOPPEL CERTIFICATE, ATTORNMENT AND SUBORDINATION

20.1 **ESTOPPEL CERTIFICATE.** Within ten (10) days after the request by Landlord, Tenant shall deliver to Landlord a written and acknowledged statement certifying that Landlord has completed construction of the Demised Premises, that Tenant has accepted possession of the Demised Premises, that this Lease is unmodified and in full force and effect (or if there have been modifications, that the same is in full force and effect as modified and stating the modifications), the Commencement Date and termination date of the Lease, that

Landlord is not in default under the Lease (or, if there is a default, stating specifically the default) and the dates to which the Minimum Rent, Additional Rent and other charges have been paid in advance, if any, and any other reasonable terms contained in the statement, it being intended that any such statement delivered pursuant to this Article may be relied upon by any prospective purchaser or mortgagee of the Shopping Center or Landlord's Parcel. Failure of Tenant to return said statement duly executed within said ten (10) day period shall be deemed to constitute Tenant's acknowledgment of the accuracy of the matters set forth therein.

20.2 **ATTORNNMENT.** Upon request of Landlord, Tenant shall, in the event any proceedings are brought for the foreclosure of, or in the event of exercise of the power of sale under any mortgage made by Landlord covering the Demised Premises, attorn to the purchaser upon any such foreclosure or sale and recognize such purchaser as Landlord under this Lease.

20.3 **SUBORDINATION.** Tenant hereby agrees this Lease, at the Landlord's or its lender's option, shall be subordinate to any ground leases or to the lien of any deed of trust, mortgage or mortgagees or the lien resulting from any other method of financing or refinancing (including modifications and renewals thereof), now or hereafter in force against the land and/or buildings of which the Demised Premises are a part or against any buildings hereafter placed upon the land of which the Demised Premises are part, and to all advances made or hereafter to be made upon the security thereof, without the necessity of the execution and delivery of any further instruments on the part of Tenant to effectuate such subordination. If any mortgagee or trustee or ground lessor shall elect to have this Lease prior to the lien of its mortgage or deed of trust or ground lease and shall give written notice thereof to Tenant, this Lease shall be deemed prior to such mortgage or deed of trust or ground lease, whether this Lease is dated prior or subsequent to the date of said mortgage or deed of trust or ground lease.

20.4 **SUBORDINATION AGREEMENT.** Tenant covenants and agrees to execute and deliver upon demand, without charge therefor, such further instruments evidencing such subordination of this Lease to the lien of any such ground leases, mortgages or deeds of trust as may be required by Landlord or its lender or ground lessor. Tenant covenants and agrees in the event any proceedings are brought for the foreclosure of any such mortgage, or if any ground or underlying lease is terminated, to attorn, without any deductions or set-offs whatsoever, to the purchaser upon any such foreclosure sale, or to the lessor of such ground or underlying lease, as the case may be, if so requested to do so by such purchaser or lessor and to recognize such purchaser or lessor as the Landlord under this Lease. Tenant waives the provisions of any current or future statute, rule or law which may give or purport to give Tenant any right or election to terminate or otherwise adversely affect this Lease and the obligations of the Tenant hereunder in the event of any foreclosure proceeding or sale.

20.5 **ATTORNEY-IN-FACT.** Tenant, upon request of any party in interest, shall execute promptly such instruments or certificates to carry out the intent of Sections 20.1, 20.2, 20.3 and 20.4 above. Tenant hereby irrevocably appoints Landlord as attorney-in-fact for Tenant with full power and authority to execute and deliver in the name of Tenant any such instruments or certificates and Tenant covenants that said appointment of Landlord as its attorney-in-fact is coupled with an interest.

20.6 **RECORDATION.** This Lease shall not be recorded without the prior consent of Landlord. Upon the request of Landlord, Tenant shall execute a short form of this Lease which may be recorded in Landlord's sole discretion. Recordation of the Lease by Tenant, or at its direction or with its approval shall, at the option of Landlord, be considered a Event of Default hereunder.

20.7 **NOTICE TO MORTGAGEE.** After receiving written notice from any person, firm or other entity that it holds a mortgage (which term shall include a deed of trust) which includes as part of the mortgaged property the Demised Premises, Tenant shall, so long as such mortgage is outstanding, be required to give to such holder a duplicate notice of any notice required to be given to Landlord by this Lease. It is further agreed that such holder shall have the same opportunity to cure any default, and the same time within which to effect such curing, as is available to Landlord; and if necessary to cure such a default, such holder shall have access to the Demised Premises.

20.8 **STATUS REPORT.** Recognizing that both parties may find it necessary to establish to third parties, such as accountants, banks, mortgagees, or the like, the then current status of performance hereunder, either party, on the written request of the other may from time to time, promptly furnish a written statement of the status of any matter pertaining to this Lease. Without limiting the generality of the foregoing, Tenant specifically agrees, promptly upon the Commencement Date of the Term to acknowledge satisfaction of the requirements with respect to construction and other matters by Landlord, save and except for matters as Tenant may wish to set forth specifically in said statement, provided such matters are truthful and accurate in all material respects.

ARTICLE XXI **LANDLORD DEFAULT**

21.1 **DEFAULT NOTICE TO LANDLORD.** Should Landlord default in the performance of any of the covenants on the part of Landlord to be kept or performed and such default shall continue for thirty (30) days after written notice to Landlord from Tenant specifying such default, or should any warranty or representation made by Landlord be untrue and remain untrue after thirty (30) days written notice from Tenant specifying such untruth, then, and only in such event, shall termination of this Lease be effected or action taken or remedy pursued. If the default or untruth is of such character so as to require more than thirty (30) days to remedy, the Landlord shall have a reasonable period in which to remedy the same; provided Landlord is proceeding diligently Tenant waives its right to make repairs at Landlord's expense.

21.2 **LANDLORD'S LIABILITY.** Notwithstanding anything to the contrary in this Lease, it is specifically understood and agreed, such agreement being a primary consideration for the execution of this Lease by the Landlord, that there shall be absolutely no personal liability on the part of the Landlord, its successors, assigns, legally appointed representatives or any mortgagee in possession (for the purposes of this Section collectively referred to as "Landlord") with respect to any of the terms, covenants and conditions of this Lease and that Tenant shall look solely to the equity of Landlord in the Shopping Center for the satisfaction of each and every remedy of Tenant in the event of any breach by the Landlord of any of the terms, covenants and conditions of this Lease to be performed by Landlord, such exculpation of liability to be absolute and without any exception whatsoever.

ARTICLE XXII **ADVERTISING**

22.1 **TENANT'S ADVERTISING.** In all advertisements of any similar business activity of Tenant in the area surrounding the Shopping Center, Tenant shall include the address and identity of its business

activities in the Demised Premises in all such advertisements, the Demised Premises shall be identified as located in the Shopping Center, as identified in Article I.

22.2 **LANDLORD'S AUTHORITY**. Tenant expressly authorizes and confers authority upon the Landlord to utilize the Tenant's name in any and all advertising of the Shopping Center, as well as indexing or in any other manner designating the location of the Tenant's Demised Premises

ARTICLE XXIII **HAZARDOUS MATERIALS**

23.1 **HAZARDOUS MATERIALS**. Tenant covenants and agrees not to use the Demised Premises in any manner which would involve the use of hazardous materials, substances or waste on the Demised Premises. "Hazardous materials" shall mean petroleum (including crude oil or any by product thereof), asbestos, polychlorinated biphenyls, any hazardous or toxic materials, wastes or substances defined as hazardous in the Comprehensive Environmental Response, Compensation and Liability Act of 1980, as amended 42 U.S.C. §9601, et seq., the Hazardous Materials Transportation Act of 1975, 49 U.S.C. § 1801-1812; the Resource Conservation and Recovery Act of 1976, 42 U.S.C. §§ 6901-6987, the Solid Waste Disposal Act, 42 U.S.C. § 6991 et seq., the Federal Water Pollution Act, 33 U.S.C. § 1251, et seq., any substance defined as "hazardous waste", and as "hazardous substances" in C.R.S. § 25-15-101, et seq., § 25-16-101, et seq. And § 25-7-101 et seq., or any substance defined as a hazardous substance or hazardous waste in any other federal, state or local statute, law, ordinance, code, regulation, order or decree regulating, relating to or imposing liability or standards of conduct concerning hazardous waste, materials or substances, now or at any time hereafter in effect. Tenant covenants and agrees not to permit the use or storage of any hazardous materials on the Demised Premises.

23.2 **INDEMNIFICATION**. Tenant covenants and agrees to indemnify, protect and save Landlord harmless from any and all claims, losses, liabilities, penalties, costs or expenses of any kind or nature whatsoever, including without limitation, attorney's and expert's fees, which may at any time be assessed or imposed against Landlord and which arise in any way out of the presence (whether preexisting or occurring after Tenant's acquisition of the Demised Premises) or use of hazardous materials on the Demised Premises, including without limitation (i) the cost of removal of such hazardous materials from the Demised Premises, (ii) additional costs required to take precautions necessary to protect against the release of hazardous materials on the Demised Premises or into the air, and (iii) costs incurred to comply with any law, orders, judgments or regulations with respect to the presence of hazardous materials. The foregoing indemnity shall survive the execution and delivery by Tenant of the Lease and its termination, and shall continue in full force and effect so long as the possibility of such liability, claim or loss exists.

ARTICLE XXIV **MISCELLANEOUS PROVISIONS**

24.1 **HOLDING OVER**. In the event that Tenant shall continue to occupy the Demised Premises after the expiration of the Term of this Lease or written extension of the Term hereof, without entering into a new Lease or written extension of the Term hereof, said tenancy shall be construed to be a tenancy from month to month upon all of the other terms and conditions herein contained, except where same are not applicable, and except that rental during such holdover period shall be the then current Minimum Rent plus one hundred percent (100%)

thereof, but Percentage Rent shall continue to be paid as if the Minimum Rent were as set forth for the original or extended term next preceding the hold over period.

24.2 **NO PARTNERSHIP.** It is expressly understood that, although the amount paid to the Landlord may be partially based upon a percentage of gross sales for rental of the Demised Premises, the Landlord and Tenant are not partners or co-venturers, and that the Landlord has no right, title or interest in and to the business of the Tenant, and that the Tenant has no right to represent or bind the Landlord in any respect whatsoever, and that nothing herein contained shall be deemed, held or construed as making the Landlord a partner or associate of the Tenant, or as rendering the Landlord liable for any debts, liabilities or obligations incurred by the Tenant; it being expressly understood that the relationship between the parties hereto is, and shall at all times remain, that of Landlord and Tenant.

24.3 **WAIVER.** Failure on the part of the Landlord to complain of any action or non-action on the part of Tenant, no matter how long the same may continue, and no matter what other action or non-action by Tenant Landlord has already complained of, shall never be deemed to be a waiver by Landlord of any of his rights hereunder. Further, it is covenanted and agreed that no waiver at any time of any of the provisions hereof, by Landlord shall be construed as a waiver of any of the other provisions hereof, and that a waiver at any time of any of the provisions hereof shall not be construed as waiver at any subsequent time of the same provisions. The consent or approval of the Landlord to or of any action by Tenant requiring Landlord's consent or approval shall not be deemed to waive or render unnecessary Landlord's consent or approval to or of any subsequent similar act by Tenant.

No payment by Tenant, or acceptance by Landlord, of a lesser amount than shall be due from Tenant to Landlord, even after demand by Landlord for Rent pursuant to Tenant's Rent default shall be treated otherwise than as a payment on account. The acceptance by Landlord of a check for a lesser amount with an endorsement or statement thereon, or upon any letter accompanying such check, that said lesser amount is payment in full, shall be given no effect, and Landlord may accept such check without prejudice to any further rights or remedies which Landlord may have against Tenant. Further, failure of the Landlord to bill timely for Taxes or other Additional Rent as heretofore required shall not be deemed a waiver of Tenant's liability to pay same.

24.4 **COVENANT OF QUIET ENJOYMENT.** Tenant, subject to the terms and provisions of this Lease, on payment of the Rent and observing, keeping and performing all of the terms and provisions of this Lease on its part to be observed, kept and performed, shall lawfully, peaceably and quietly have, hold, occupy and enjoy the Demised Premises during the Term hereof without hindrance or objection by any persons lawfully claiming under Landlord. It is further understood and agreed that with respect to any service, maintenance and/or improvements to be furnished by Landlord to Tenant, Landlord shall in no event be liable for failure to furnish the same, or be subject to the provisions of Section 5.1 hereof, when prevented from so doing by strike, lockout, act of God, breakdown, accident, order or regulation of or by any governmental authority, or failure of supply, or inability by the exercise of reasonable diligence to obtain supplies, parts or employees necessary to furnish such services, or because of war or other emergency, or for any cause beyond Landlord's reasonable control, or for any cause due to any act or neglect of Tenant or its servants, agents, employees, licensees, or any person claiming by, through or under Tenant, or any termination for any reason of Tenant's occupancy of the premises for which the service is being supplied by Landlord, and in no event shall Landlord ever be liable to Tenant for any indirect or inconsequential damage.

24.5 **ENTIRE AGREEMENT.** This Lease includes those Exhibits and Addendum listed in Article I. All previous agreements, whether oral or written, are superseded by and merged within this Lease. Subsequent changes shall not be binding unless reduced to writing and signed by the parties hereto.

24.6 **INVALIDATION OF PARTICULAR PROVISIONS.** If any term or provision of this Lease, or the application thereof to any person or circumstance shall, to any extent, be invalid or unenforceable, the remainder of this Lease, or the application of such term or provision to persons or circumstances other than those as to which it is held invalid or unenforceable, shall not be affected thereby, and each term and provision of this Lease shall be valid and be enforced to the fullest extent permitted by law.

24.7 **PROVISIONS BINDING, ETC.** Except as herein otherwise expressly provided, the terms hereof shall be binding upon and shall inure to the benefit of the heirs, successors, assigns and legally appointed representatives, respectively, of the Landlord and the Tenant. Each term and each provision of this Lease to be performed by Tenant shall be construed to be both a covenant and a condition. The reference combined herein to successors and assigns of Tenant is not intended to constitute a consent to assignment by Tenant, but has reference only to those instances in which Landlord may give written consent to a particular assignment as required by the provisions of Article XV hereof.

24.8 **GOVERNING LAW.** The laws of the State of Wyoming shall govern the interpretation, validity, performance and enforcement of this Lease. This Lease shall be construed without regard to any presumption or other rule requiring construction against the party causing this Lease to be drafted. Each covenant, agreement, obligation, or other provision of this Lease on Tenant's part to be performed shall be deemed and construed as a separate and independent covenant of Tenant, not dependent on any other provision of this Lease or any other covenant regardless of the number or gender in which they are used, and shall be deemed to include any other number and any other gender as the context may require.

24.9 **NOTICES.** Any notice which is required under this Lease shall be deemed "given" upon hand delivery or three (3) days after prepaid posting in the U.S. mail, whichever shall first occur. Notices shall be addressed to Landlord or Tenant at the address set forth in Article I or to any other address as shall be designated by written notice.

24.10 **DATE OF LEASE.** All references to the date of this Lease's or the "date hereof" shall be deemed to be that date on which all parties hereto have executed this Lease as set forth on the signature page hereof.

24.11 **HEADINGS.** The headings, Section numbers and Article numbers appearing in this Lease are not intended in any manner to define, limit or describe the scope of any such section or article and are solely inserted for ready reference purposes.

24.12 **PRONOUNS.** As utilized in this Lease, the "singular" pronouns shall include the "plural", and the "masculine" shall include the "feminine" and the "neuter", and vice versa, unless a contra intent specifically appears.

24.13 ANTI-TERRORISM REPRESENTATION. Neither Tenant nor any of its affiliates have engaged in any dealings or transactions, directly or indirectly, (i) in contravention of any U.S., international, or other money laundering regulations or conventions, including, without limitation, the United States Bank Secrecy Act, the United States Money Laundering Control Act of 1986, the United States International Money Laundering Abatement and Anti-Terrorist Financing Act of 2001, Trading with the Enemy Act (50 U.S.C. Section 1, et. seq., as amended), or any foreign asset control regulations of the United States Treasury Department (31 CFR, Subtitle B, Chapter V, as amended), or any enabling legislation or executive order relating thereto; or (ii) in contravention of Executive Order No. 13,224, 66 Fed. Reg. 49,079 (2001) issued by the President of the United States (Executive Order Blocking Property and Prohibiting Transactions with Persons Who Commit, Threaten to Commit, or Support Terrorism), as may be amended or supplemented from time to time ("Anti-Terrorism Order") or on behalf of terrorists or terrorist organizations, including those persons or entities that are included on any relevant lists maintained by the United Nations, North Atlantic Treaty Organization, Organization of Economic Cooperation and Development, Financial Action Task Force, U.S. Office of Foreign Assets Control, U.S. Securities & Exchange Commission, U.S. Federal Bureau of Investigation, U.S. Central Intelligence Agency, U.S. Internal Revenue Service, or any country or organization, all as may be amended from time to time. Neither Tenant nor any of its affiliates are a person described in Section 1 of the Anti-Terrorism Order and neither Tenant nor any of its Affiliates have engaged in any dealings or transactions, or otherwise been associated with any such person. If at any time this representation becomes false, then it shall be considered an event of default under this Lease and Landlord shall have the right to exercise all of the remedies set forth herein.

24.14 CHANGES AND ADDITIONS TO SHOPPING CENTER. Landlord shall have the exclusive right to use all or any part of the roof over the Demised Premises and exterior walls of the Demised Premises for any purpose and Tenant shall make no roof penetration or exterior wall penetration without complying with the provisions of Section 9.6 hereof; to erect in connection with the construction thereof temporary scaffolds and other aids to construction on the exterior of the Demised Premises, provided that access to the Demised Premises shall not be denied; and to install, maintain, use, repair and replace pipes, ducts, conduits and wires leading through the Demised Premises and serving other parts of the Shopping Center in locations which will not materially interfere with Tenant's use thereof. In addition to the foregoing, Landlord may make any use it desires of the side and rear walls of the Demised Premises, provided that there shall be no encroachment upon the interior of the Demised Premises. Landlord hereby reserves the right at any time to make alterations or additions to, and to build additional stories on, the building in which the Demised Premises are contained and to build adjoining the same. Landlord also reserves the right to construct other buildings or improvements in the Shopping Center from time to time and to make alterations thereof or additions thereto and to build additional stories on such building or buildings and to incorporate additional land into the Landlord's Parcel or the Shopping Center and to build thereon and to construct deck or elevated parking facilities. For all purposes under this Lease the term "Shopping Center" shall mean the Shopping Center as may from time to time be changed by Landlord. For all purposes under this Lease, including, but not limited to Sections 8.2, and 9.4, the term "Landlord's Parcel" shall mean the Landlord's Parcel as may from time to time be changed by Landlord.

24.15 SALE OF THE SHOPPING CENTER BY LANDLORD. In the event of any sale of the Shopping Center by Landlord, Landlord shall be relieved of all liability under any and all of its covenants and obligations contained in or derived from this Lease arising out of any act, occurrence or omission occurring after the consummation of such sale, and the purchaser shall be deemed, without any further agreement between the parties and any such purchaser, to have assumed and agreed to carry out any and all of the covenants and obligations of

Landlord under this Lease. Any security given by Tenant to secure performance of Tenant's obligations hereunder may be assigned and transferred by Landlord to such successor in interest, and Landlord shall thereby be discharged of any further obligation relating thereto.

24.16 **RIGHT TO RELOCATE.** At any time during the Lease Term, Tenant shall be required, at the request of Landlord, to vacate the Leased Premises and relocate to another Premises in the Shopping Center (the "Relocation Premises"). Such request by Landlord shall be in a written notice given at least sixty (60) days prior to the proposed relocation date and shall specify the proposed Relocation Premises and relocation date. The Relocation Premises may be greater or lesser in size than the Leased Premises, provided, however, that in the event the Relocation Premises are larger than the Leased Premises, Tenant's Minimum Rent shall not be increased and, in the event the Relocation Premises are smaller than the Leased Premises, Tenant's Minimum Rent and additional rent shall be proportionately reduced. In connection with such relocation, Landlord shall be required to prepare the Relocation Premises so that the Relocation Premises are in at least as good a physical condition as the Leased Premises. If Tenant has already taken occupancy of the Leased Premises, then Landlord shall be responsible for all costs and expenses, up to \$10.00 per square foot of the Relocation Premises, in connection with the relocation and set up including installation of Tenant's equipment, inventory and furniture in the Relocation Premises. Tenant shall surrender the Leased Premises to Landlord on the relocation date in the condition required upon expiration or sooner termination of this Lease pursuant to Section 7.4 hereof. From and after the relocation date the term Leased Premises shall mean the Relocation Premises.

24.17 **LEASE REVIEW.** It is understood and agreed that Landlord's obligations under this Lease are subject to Landlord's long-term financing. If any lender furnishing any such financing should require as a condition to any such financing that changes be made in this Lease, Landlord shall have the right to cancel this Lease if Tenant refuses to approve in writing any reasonable modification (provided said modification does not affect Tenant's economic operations hereunder or affect its use of the Demised Premises for the purposes set forth herein) required by said reviewing party within fifteen (15) days after Landlord's request there for. If such right to cancel is exercised, this Lease shall thereafter be null and void and neither party shall have any liability to the other by reason of such cancellation.

24.18 **TIME IS OF THE ESSENCE.** Time is of the essence of each and every provision hereof.

24.19 **GUARANTOR.** In the event that there is a Guarantor of this Lease, said Guarantor shall have the same obligations as Tenant under this Lease.

24.20 **RULES AND REGULATIONS.** The rules and regulations adopted and promulgated by Landlord from time to time are hereby made a part of this Lease, and Tenant agrees to comply with and observe the same. Tenant's failure to keep and observe said rules and regulations shall constitute a breach of this Lease in a manner as if the same were contained herein as covenants. Landlord reserves the right from time to time to amend or supplement said rules and regulations and to adopt and promulgate additional rules and regulations applicable to the Demised Premises and the Shopping Center. Notice of such rules and regulations and amendments and supplements, if any, shall be given to Tenant, and Tenant agrees thereupon to comply with and observe all such rules and regulations and amendments thereto and supplements thereof, provided that no rule or regulation shall contradict any provision of this Lease.

24.21 **REPORTS BY TENANT.** On or before the 15th day of each month during the Term hereof, Tenant shall deliver to Landlord at such place as the Landlord shall prescribe for payment of the Minimum Rent herein reserved, a written statement signed and certified by a qualified financial officer of the Tenant to be a true and accurate statement of "gross receipts" made during the preceding calendar month. In addition thereto, Tenant shall on or before the 15th day of February following each full or partial calendar year of the Term hereof, deliver to the Landlord a statement certified by a certified public accountant, therein showing any and all "gross receipts" made during the preceding calendar year. Upon Landlord's request, Tenant and Guarantors shall provide current business and personal financial statements. It is expressly understood that any such financial information received by the Landlord may be disclosed to any potential lender of Landlord and/or the holder of any security instrument encumbering the Landlord's parcel and/or to any potential purchaser of Landlord's parcel to the extent that information is requested by the potential lender, holder or purchaser and is combined within the above prescribed reports.

24.22 **BROKERAGE.** Additionally, each party represents that no other brokers, finders or similar fee or commission is due in connection with this Lease and hereby agrees to indemnify and hold the other harmless from any claim, expense or cost (including court costs and reasonable attorney's fees whether suit be bought or not) resulting from any claims made by or through such party for a fee or commission.

24.23 **FLOOR AREA.** The term "floor area" as used in this Lease means, with respect to any leasable area in the Shopping Center, the aggregate number of square feet of floor space of all floor levels therein, including any mezzanine space (to the extent reflected in the applicable leases), measured from (i) the outside faces of all perimeter walls thereof other than any party wall separating such premises from other leasable premises, (ii) the center line of any such party wall, (iii) the outside face of any interior wall, and (iv) the building and/or lease line adjacent to any entrance to such premises. In the event Landlord determines that the square foot area of the Demised Premises is at variance with the square foot area stated in this Lease, Landlord may, at its option, from time to time adjust the floor area of the Demised Premises and make proportional adjustments in Minimum Rent, Percentage Rent and Additional Rent. Tenant may request that the Floor Area of the Demised Premises be measured and verified by an independent party selected by Landlord within sixty (60) days of the date of mutual Lease execution. If Tenant fails to request a measurement verification, then they shall be deemed to have accepted the Floor Area of the Demised Premises as stated in Article I. Any measured and verified Floor Area of the Demised Premises shall be deemed final and binding upon Tenant and Landlord.

24.24 **WAIVER OF JURY TRIAL.** Landlord and Tenant waive any right to a trial by jury in any action or proceeding based upon, or related to, the subject matter of this Lease. This waiver is knowingly, intentionally and voluntarily made by both parties. Both parties further acknowledge that they have been represented (or have had the opportunity to be represented) in the signing of this Lease and in making this waiver by independent legal counsel, selected of their own free will, and that they have had the opportunity to discuss this waiver with counsel. Both parties further acknowledge that they have read and understand the meaning and ramifications of this waiver provision.

24.25 **FORUM.** Landlord and Tenant agree any action commenced hereunder to enforce the terms of this Lease shall be brought in a court of competent jurisdiction in the County in which the Shopping Center is located.

24.26 **RESOLUTION.** If Tenant is a corporation, limited partnership, general partnership, limited liability company or other entity, Tenant represents and warrants it is duly organized and validly existing under the laws of the State of Wyoming and has full and lawful right and authority to execute and deliver this Lease and to consummate the transactions contemplated hereby. Furthermore, Tenant represents and warrants that the person or persons executing this Lease and any documents required hereunder on behalf of Tenant have full power and authority to do so.

24.27 **COUNTERPARTS.** This Lease may be executed by facsimile or electronic signature and in any number of counterparts, all of which taken together shall constitute one and the same original, and the execution of separate counterparts by the parties shall bind the parties as if they had each executed the same counterpart.

24.28 **LEASE CONTINGENCY.** Tenant's obligations under the Lease will be conditioned upon a termination of the current lease agreement with Weiss Pizza Corporation d/b/a Parkway Pizza.

24.29 **COMPLIANCE WITH ADA.** Notwithstanding anything to the contrary contained in this Lease, Landlord and Tenant agree that responsibility for compliance with the Americans With Disabilities Act of 1990 (the "ADA") shall be allocated as follows: (i) Landlord shall be responsible, as a Common Area Operating Cost, for compliance with the provisions of Title III of the ADA for all Common Areas, not included within the Demised Premises or the premises of other tenants; and (ii) Tenant shall be responsible for compliance with the provisions of Title III of the ADA for any construction, renovations, alterations, and repairs made within the Demised Premises if such construction, renovations, alterations and repairs are made by Tenant or its contractors or otherwise at the direction of the Tenant.

24.30 **RESTAURANT CLAUSE.** Tenant acknowledges and agrees that the nature of Tenant's Permitted Use under Section 6.1, e.g., a restaurant serving liquor, could pose particular potential dangers to the environment; the sewage disposal and drainage system serving the Shopping Center and the surrounding community; the roof; the Shopping Center itself; and the health and safety of shoppers, other tenants and other persons using the Shopping Center. As a material inducement for Landlord to enter into this Lease, Tenant agrees that the elimination of all of these dangers, including public intoxication of restaurant patrons, shall be solely Tenant's responsibility. Furthermore, Tenant shall retain, at its sole cost and expense, a licensed service to perform all cleaning and maintenance of the grease interceptor and hood cooking equipment system (including rooftop grease collection and containment systems), including disposal and cleaning performed at least quarterly during the term and any extended term of this Lease. Landlord retains the right to approve any service selected by Tenant and Landlord may require Tenant to utilize a service selected by Landlord. In the event Tenant fails to pay when due and before becoming delinquent, any charges, fees or costs of said service (whether selected by Tenant or Landlord) Landlord may (but shall not be required) to pay such charges, fees or costs in which event Tenant shall within three (3) days after notice thereof from Landlord reimburse Landlord for such charges, fees or costs incurred together with a service charge imposed by Landlord of ten percent (10%) thereof.

24.31 **FURNITURE FIXTURES AND EQUIPMENT.** Landlord grants the right to use the furniture, fixtures and equipment currently in place within the demised premises as described in Exhibit Two. Landlord makes no warranties. Tenant hereby agrees to pay all personal property taxes, maintenance and replacement costs associated with the use of said furniture, fixtures and equipment during the lease term and any

renewals thereof. Upon the expiration or termination of this lease, the furniture, fixtures and equipment shall be returned to Landlord in the same condition as existed on the commencement date of this Lease, normal wear and tear excepted.

[SIGNATURE PAGE OR PAGES TO FOLLOW]

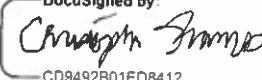
LANDLORD:

CHEYENNE PLAZA, LLC,
a Colorado limited liability company

DocuSigned by:
 7/23/2024
By: 3FB85AD58B594EE
Robert E. Perry
Manager, Cheyenne Plaza, LLC

TENANT:

Thompson-Weaver, LLC

DocuSigned by:
 7/10/2024
By: CD9492B01FD8412

Title: Owner

LANDLORD'S ACKNOWLEDGMENT

STATE OF COLORADO)
) ss.
COUNTY OF _____)

The above and foregoing Shopping Center Lease, was acknowledged before me this _____ day of _____, 20__, by Robert E. Perry, as _____ of _____.

WITNESS my Hand and official seal.

My commission expires: _____

Notary Public

TENANT ACKNOWLEDGMENT
(Corporation Partnership, Limited Partnership)

STATE OF WYOMING)
) ss.
COUNTY OF _____)

The above and foregoing Shopping Center Lease Was Acknowledged before me this _____ day of _____, 20__, by _____ and _____ as _____ of _____.

WITNESS my hand and official seal.

My Commission Expires: _____

Notary Public

EXHIBIT "A"
DEMISED PREMISES

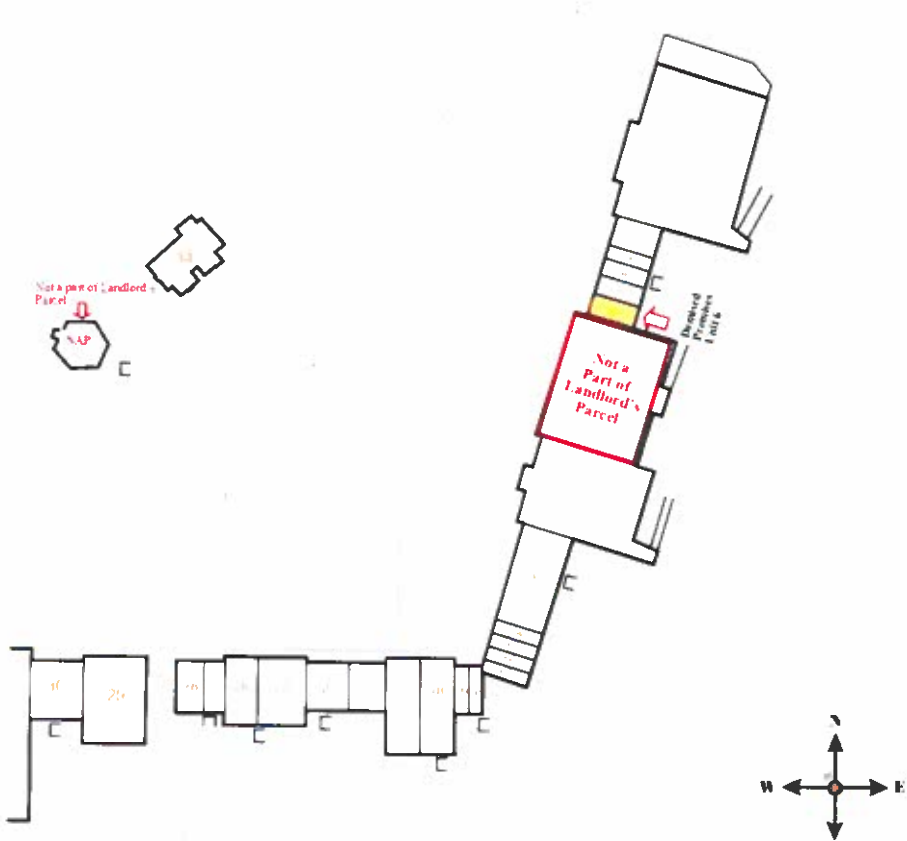


EXHIBIT "B"
SHOPPING CENTER LEGAL DESCRIPTION

PARCEL 1
A portion of Lot 1, Block 1, Cheyenne Plaza Shopping Center, an Addition to the City of Cheyenne, Laramie, County, Wyoming, and being more particularly described as follows:

Beginning at the northern most corner of said Block marked by a Wyoming Highway Right-of-Way marker; thence S.82°44'17"E. on and along said southerly Right-of-Way a distance of 226.34 feet to the intersection point of the westerly right-of-way line of a Wyoming State Highway currently known as College Drive; thence on and along said westerly Right-of-Way of College Drive on a curve to the right whose radius is 250.00 feet through a central angle of 70°27'36" a distance of 107.44 feet and whose chord bears S.56°27'26"E., a distance of 268.43 to a 5/8" rebar with survey cap L.S. #347; thence S.0°17'05"E. on and along said westerly Right-of-Way a distance of 183.92 feet to a 5/8" rebar with survey cap L.S. #2206; thence on and along said westerly Right-of-Way on a curve to the left whose radius is 5879.6 feet through a central angle of 2°08'07" a distance of 219.12 feet and whose chord bears S.18°28'46"W. a distance of 219.10 feet to a point on the curve; thence N.74°42'29"W. a distance of 676.98 feet to a point; thence N. 41°07'40"W. a distance of 133.41 feet to a point; thence N.48°52'20"E. on and along said southerly Right-of-Way a distance of 360.19 feet to a point; thence S.41°07'40"E. a distance of 100 feet to a point; thence N.48°52'20"E. a distance of 97 feet to a point; thence N.41°07'40"W. a distance of 100 feet to the point of beginning.

AND

A portion of Lot 3, Block 1, Cheyenne Plaza Shopping Center, an Addition to the City of Cheyenne, Laramie, County, Wyoming, and being more particularly described as follows:

Beginning at the southwest corner of said Block marked by a 5/8" rebar with Surv-Kap; thence due North along the western boundary of said subdivision a distance of 387.35 feet to a point; thence S.89°55'56"E. a distance of 91.86 feet to a point; thence N.00°04'04"E. a distance of 118.5 feet to a point; thence S.89°53'56"W. a distance of 94.0 feet to a point; thence North a distance of 68.00 feet to a point; thence S.89°55'56"E. a distance of 30.65 feet to a point; thence N.48°52'20"E. a distance of 431.99 feet to a point; thence S.41°07'40"E. a distance of 128.41 feet to a point; thence S.15°17'31"W. a distance of 90.86 feet to a point; thence S.74°42'29"E. a distance of 589.20 feet to a point on the westerly Right-of-Way line of a Wyoming State Highway currently known as College Drive; thence S.16°54'04"W. on and along said westerly Right-of-Way a distance of 541.42 feet to an intersection point on the northerly Right-of-Way line of East 12th Street, monumented by a 5/8" rebar with survey cap L.S. #347; thence S.89°59'00"W. on and along said northerly Right-of-Way of East 12th Street a distance of 704.15 feet to a 5/8" rebar with survey cap L.S. #347; thence due West on and along said northerly Right-of-Way of East 12th Street a distance of 123.35 feet to the True Point of Beginning.

AND

A portion of Lot 3, Block 1, Cheyenne Plaza Shopping Center, an Addition to the City of Cheyenne, Laramie, County, Wyoming, and being more particularly described as follows:

continued

RECORDED 12/24/2002 AT 9:09 AM RECH 339383 K4 1632 P64 1880
EBRA K. LATHROP, CLERK OF LARAMIE COUNTY, WY PAGE 4 OF 12

Beginning at the southwest corner of said block, marked with a 5/8" rebar with Surv-Kap; thence North a distance of 387.35 feet along the western boundary of said subdivision to the true point of beginning; thence S.89°55'56"E. a distance of 93.86 feet to a point; thence N.00°04'04"E. a distance of 118.5 feet to a point; thence N.89°55'56"W. a distance of 94.00 feet to a point; thence South a distance of 118.50 feet along the western boundary of said subdivision, to the point of beginning.

EXCEPT A portion of Lot 3, Block 1, Cheyenne Plaza Shopping Center, an Addition to the City of Cheyenne, Laramie, County, Wyoming, and being more particularly described as follows:

Beginning at the southwest corner of said block, marked with a 5/8" rebar with Surv-Kap; thence due North a distance of 274.42 feet to a point; thence S.87°55'14"E., 153.07 feet to a point; thence on and along a curve to the right, through a central angle of 87°55'14" with a radius of 18.58 feet and a chord bearing S.43°55'35"E., a chord distance of 25.68 feet to a point; thence S.00°04'04"W. a distance of 250.35 feet to a point; thence S.89°59'00"W., 47.14 feet to a point; thence due West 123.35 feet to the point of beginning.

PARCEL 2

A portion of Lot 3, Block 1, Cheyenne Plaza Shopping Center, an Addition to the City of Cheyenne, Laramie, County, Wyoming, and being more particularly described as follows:

Beginning at the southwest corner of said block, marked with a 5/8" rebar with Surv-Kap; thence due North a distance of 274.42 feet to a point; thence S.87°55'14"E., 153.07 feet to a point; thence on and along a curve to the right, through a central angle of 87°55'14" with a radius of 18.58 feet and a chord bearing S.43°55'35"E., a chord distance of 25.68 feet to a point; thence S.00°04'04"W. a distance of 250.35 feet to a point; thence S.89°59'00"W., 47.14 feet to a point; thence due West 123.35 feet to the point of beginning.

AND

A portion of Lot 1, Block 1, Cheyenne Plaza Shopping Center, an Addition to the City of Cheyenne, Laramie, County, Wyoming, and being more particularly described as follows:

Beginning at the northern most corner of said block marked by a Wyoming Highway Department Brass Cap Right-of-Way marker; thence S.48°52'20"W., along the right-of-way a distance of 97.00 feet to a point; thence S.41°07'40"E. a distance of 100.08 feet to a point; thence N.48°52'20"E. a distance of 97.00 feet to a point; thence N.41°07'40"W. a distance of 100.08 feet to the point of beginning.

AND

A portion of Lot 3, Block 1, Cheyenne Plaza Shopping Center, an Addition to the City of Cheyenne, Laramie, County, Wyoming, and being more particularly described as follows:

continued

RECORDED 12/24/2002 AT 9:09 AM REC'D 339383 X# 1592 PG# 1081
JEDRA K. LATHROP, CLERK OF LARAMIE COUNTY, WY PAGE 5 OF 12

Beginning at a 5/8" rebar with Surv-Kap at the northwest corner of said Block; thence on and along a curve to the left whose radius is 838.91 feet through a central angle of 1°11'36" and whose chord bears N.57°48'54"E. a distance of 17.47 feet to a Wyoming Highway Dept. Right-of-Way marker; thence N.51°33'57"E. a distance of 236.11 feet along said right-of-way to a Wyoming Highway Department right-of-way marker; thence N.48°53'20"E. a distance of 94.00 feet along said right-of-way to a 5/8" rebar with Surv-Kap; thence S.41°07'40"E. a distance of 130.00 feet to a point; thence S.48°52'20"W. a distance of 431.99 feet to a point; thence N.89°55'56"W. a distance of 30.65 feet to a point; thence north a distance of 164.12 feet along the western boundary of said subdivision to the point of beginning.

PARCEL 1

Rights of way and easements relating to the above described property, granted in that certain Reciprocal Easement Agreement, dated as of August 22, 1978 by Busch Development, Inc., a Utah Corporation, and recorded September 8, 1979 in Book 1114, Page 313, Records of Laramie County, Wyoming.

PARCEL 4

Rights of way and easement relating to the above described property, granted in that certain Declaration of Restrictions and Grant of Easements by Kroh Brothers Development Company, a Missouri Corporation and Albertson's, Inc., a Delaware Corporation, dated as January 24, 1980, recorded August 12, 1980 in Book 1142, Page 1375, Records of Laramie County, Wyoming, as amended by that certain First Amendment to Declaration of Restrictions and Grant of Easements dated as of July 28, 1980 between Kroh Brothers Development Company, a Missouri Corporation and Albertson's Inc., a Delaware Corporation recorded August 12, 1980 in Book 1142, Page 1398, Records of Laramie County, Wyoming.

RECORDED 12/24/2002 AT 9:09 AM REC# 333383 X# 1692 PG# 1062
VERBA K. LATROP, CLERK OF LARAMIE COUNTY, WY PAGE 6 OF 12

EXHIBIT ONE
LANDLORD'S AND TENANT'S WORK

LANDLORD'S WORK
(Landlord's Expense)

Landlord shall install a concrete pad approximately 100 square feet in size in the common area located behind the Demised Premises as part of shopping center common area maintenance. The work is to be completed in conjunction with the next common area concrete maintenance and repair work order.

Tenant accepts the Demised Premises in "As-is/Where-Is" Tenant acknowledges that it is familiar with the Demised Premises and except as specifically set forth herein to the contrary, there is no work to be performed by Landlord and no representation or warranty by Landlord as to the fitness of the Demised Premises, or any equipment servicing the Demised Premises, for any use permitted herein.

TENANT'S WORK
(Tenant's Expense)

Tenant agrees that prior to, during, and after the lease term, Tenant's Work shall be deemed to include any and all changes, additions, alterations, or improvements in or on the Demised Premises, including but not limited to, tenant improvements or alterations, attached fixtures, signage, and equipment servicing the Demised Premises (whether located inside or outside of the Demised Premises). Tenant shall, at least thirty (30) days prior to commencement of any and all Tenant's Work, submit plans to Landlord for Landlord's prior written approval.

Any change, upgrade, revision, or other modification required as a result of Tenant's use of the Demised Premises, whether said change, upgrade, revision or modification shall occur within Tenant's space, or in the common area, shall be the sole responsibility of Tenant.

EXHIBIT TWO
FURNITURE FIXTURES AND EQUIPMENT

TABLES AND CHAIRS TO SEAT 40 PEOPLE
3 KIDS ARCADE GAMES
COKE DISPENSER
COUNTER AND POS SYSTEM
COKE REFRIGERATOR
PHONE SYSTEM
STEAM TABLE
TWO REFRIGERATED PREP TABLES
FLAT TOP
TWO PIZZA OVENS
DEEP FRYER
TWO BREAD BOXES
WOODEN PREP TABLE
WALK IN REFRIGERATOR
RACKS INSIDE WALK IN
THREE TUB SINK
TWO FREEZERS
DRY STORAGE RACKS
DESK AND CHAIR
LAPTOP AND PRINTER
SAFE
ALARM SYSTEM
DOUGH TRAYS (40)
INDUSTRIAL MIXER

ANY OTHER FURNITURE, FIXTURES, OR EQUIPMENT LOCATED WITHIN THE
DEMISED PREMISES AS OF JUNE 1, 2024.

GUARANTY OF LEASE

In order to induce Cheyenne Plaza LLC ("Landlord") to enter into that certain Lease effective as of June 1, 2024 (the "Lease") with Thompson-Weaver, LLC ("Tenant"), Christopher Thompson and Mitchell M. Weaver ("Guarantor(s)") hereby makes the following indemnification and agreements with and in favor of Cheyenne Plaza LLC (Landlord) :

(a) Guarantor hereby covenants and agrees with Landlord (i) to make the due and punctual payment of all rent, monies and charges expressed to be payable under the Lease (including Minimum Rent, Percentage Rent and Additional Rent as those terms are defined in the Lease) during the Term thereof and any renewals thereof; (ii) to effect prompt and complete performance of all and each of the terms, covenants, conditions and provisions contained in the Lease on the part of Tenant to be kept, observed and performed during the period of the Term and any renewals thereof; (iii) to indemnify and save harmless Landlord from any loss, costs or damages arising out of any failure to pay the aforesaid rent, monies, and charges or the failure to perform any of the terms, conditions and provisions.

(b) In the event of a default under the Lease, Guarantor waives any right to require Landlord to (i) proceed against Tenant or pursue any rights or remedies with respect to the Lease; (ii) proceed against or exhaust any security that Landlord holds from Tenant; or (iii) pursue any other remedy whatsoever in Landlord's power. Landlord shall have the right to enforce this guaranty regardless of the acceptance of additional security from Tenant and regardless of the release or discharge of Tenant by Landlord or by others, or by operation of any law.

(c) Guarantor hereby expressly waives any right of set off or compensation against amounts due under this guaranty and waives notice of the acceptance of this guaranty and all notice of non-performance, non-payment or non-observance on the part of Tenant of the terms, covenants, or conditions and provisions of the Lease.

(d) Without limiting the generality of the foregoing, the liability of Guarantor under this guaranty shall not be deemed to have been waived, released, discharged, impaired, or affected by reason of any waiver or failure to enforce any of the obligations of Tenant under the Lease, or assignment of the Lease, or the subletting of the premises by Tenant or by the expiration of the Term, or the release or discharge of Tenant in any receivership, bankruptcy, winding-up or other creditors proceedings or the rejection, disaffirmance or disclaimer of the Lease by any party in any action or proceeding, and shall continue with respect to the periods prior thereto and thereafter, for and with respect to the Term originally contemplated and expressed in the Lease. The liability of Guarantor shall not be effected by any repossession of the premises by Landlord; provided, however, that the net payments received by Landlord after deducting all costs and expenses of repossession and/or reletting the same, shall be credited from time to time by Landlord to the account of Guarantor, and Guarantor shall pay any balance owing to Landlord from time to time immediately upon ascertainment.

(e) This guaranty shall be one of payment and performance and not of collection notwithstanding the use of the words "indemnity" or "guaranty". Each Guarantor shall be jointly and severally liable hereunder.

(f) Guarantor shall, without limiting the generality of the foregoing, be bound by this guaranty in the same manner as though Guarantor were the Tenant in the Lease.

(g) All of the terms, agreements and conditions of this guaranty shall extend to and be binding upon Guarantor, his heirs, executors, administrators, successors, and assigns, and shall inure to the benefit of and may be enforced by Landlord, its successors and assigns, and the holder of any mortgage to which the Lease may be subject and subordinate from time to time.

DocuSigned by:
Christopher Thompson 7/10/2024
CD8492B01ED8412
GUARANTOR: Christopher Thompson

DocuSigned by:
Mitchell M. Weaver 7/10/2024
8633F0535FD8436
GUARANTOR: Mitchell M. Weaver

TENANT INFORMATION

TENANT:

Name: _____
D/B/A: _____
Email Address: _____
Notice Address: _____
Business Address: _____
Principal Home Address: _____
Business Phone No : _____
Principal Home Phone No. : _____
Business Tax ID _____
Principal Social Security No.: _____
Principal Driver's License No: _____
Business Bank Name & Address: _____
Business Bank Account Name & Account Number: _____
Principal Bank Name & Address: _____
Principal Bank Account Name & Account Number: _____

GUARANTOR(S):

Christopher Thompson
Name: _____
Email Address: _____
Home Address: ~~806 broken wheel ct Cheyenne wy~~ _____
Business Address: _____
Home Phone No.: _____
Business Phone No.: 3073692159 _____
Social Security No.: _____
Driver's License No.: _____
Bank Name & Address: _____
Bank Account Name & Account Number: _____

Mitchell M. weaver
Name: _____
Email Address: weavermm87@gmail.com _____
Home Address: _____
Business Address: _____
Home Phone No.: _____
Business Phone No.: _____
Social Security No.: 520198654 _____
Driver's License No.: _____
Bank Name & Address: _____
Bank Account Name & Account Number: _____

The above information and any supporting schedules and attachments are submitted for the purpose of establishing, obtaining, and maintaining credit. Cheyenne Plaza, LLC and/or Robert Perry Investments and/or their affiliates are authorized to contact any appropriate third parties for the purpose of verifying and releasing financial information regarding any of the above information. I/We further authorize Cheyenne Plaza, LLC and /or Robert Perry Investments, or any of their affiliates, to conduct a credit, criminal and/or civil background check as part of consideration to lease space at Cheyenne Plaza.

Christopher Thompson
Signature/Title _____
Mitchell M. Weaver
Signature/Title _____

7/10/2024
Date _____
7/10/2024
Date _____

Issued by:

**WYOMING DEPARTMENT OF AGRICULTURE
CONSUMER HEALTH SERVICES
2219 CAREY AVE
CHEYENNE, WY 82002
EQUAL OPPORTUNITY IN EMPLOYMENT AND SERVICES**

Retail Food

ACCOUNT # 13288

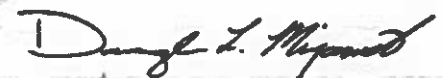
Whereas this party has made application for the licenses listed below in the State of Wyoming according to the law and agrees to comply with all laws, rules and regulations thereto, including the payment of all required fees, there is hereby issued to the applicant this license. This license is not transferable and, unless revoked, shall expire on the date indicated below.

Issued to:

**PARKWAY PIZZA
3753 E LINCOLNWAY
CHEYENNE, WY 82001**

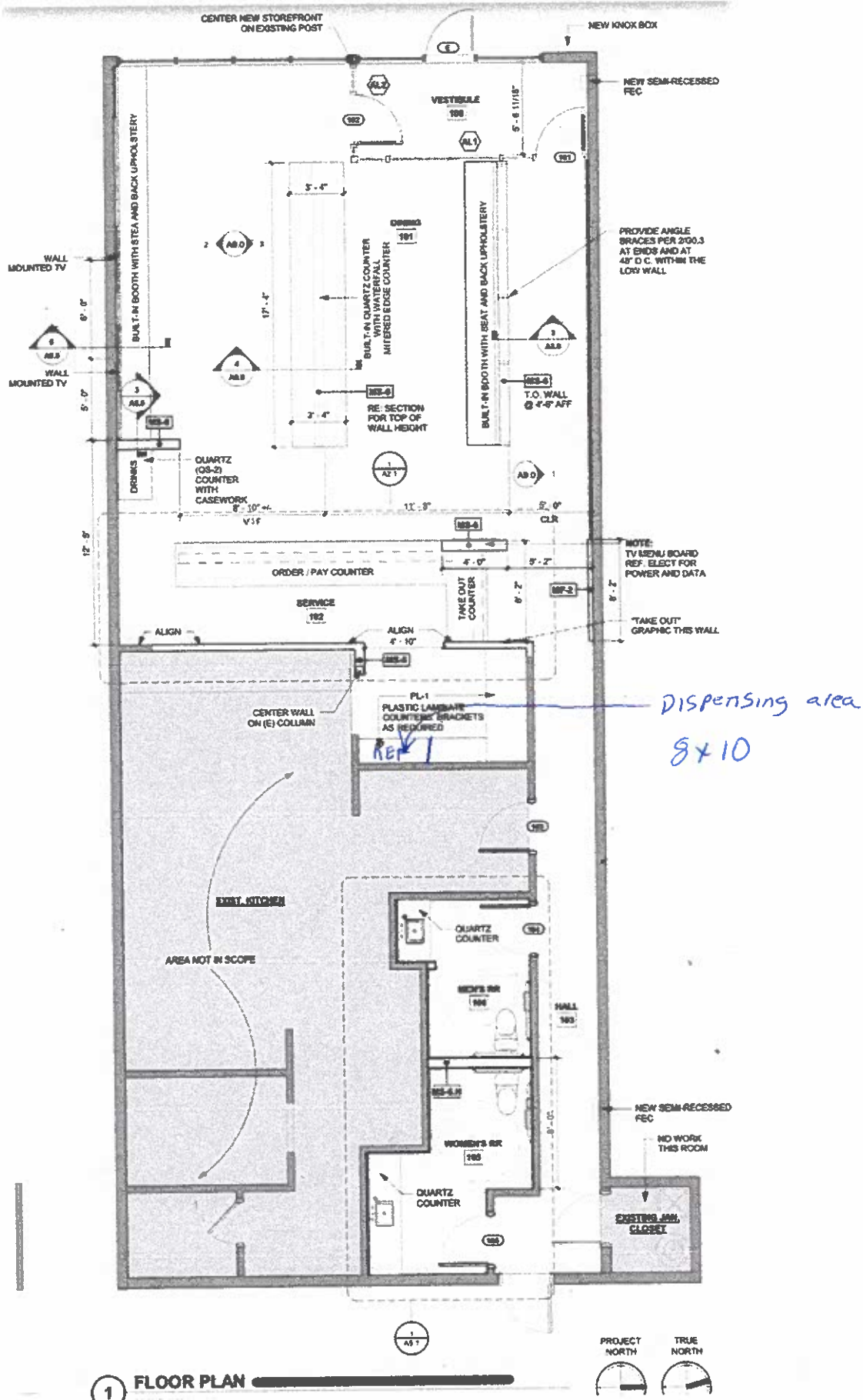
**EXPIRATION DATE:
5/16/2025**

**THOMPSON-WEAVER LLC
CHRISTOPHER THOMPSON
3753 E LINCOLNWAY
CHEYENNE, WY 82001**



Director of Dept. of Ag

**THIS LICENSE MUST BE CURRENT
AND POSTED CONSPICUOUSLY
AT THE PHYSICAL LOCATION**



DRINKS

- Regular Fountain - \$3.25
- Large Fountain - \$3.50
- Glass Bottled Soda - \$3.25
- Yummy Yummy Juice - \$2.25
- Bottled Water - \$1.75

APPETIZERS & SIDES

- Wings - Hot, Mild, Barbecue
 - 6 for \$8.25
 - 12 for \$15.25
- Pepperoni Roll - \$3.75
- Jalapeno Pepperoni Roll - \$4.00
- Garlic Knots - \$4.25
- Bread & Butter - \$2.25
- Garlic Cheese Bread - \$4.25
- Regular Fries - \$2.75
- Cheese Fries - \$3.75

Salads

- Tossed Salad - \$4.75
- Combo Salad - \$9.25 Corned with Bread & Butter
- Turkey Salad - \$9.25 Corned with Bread & Butter
- Grilled Chicken Salad - \$9.75 Corned with Bread & Butter
- Antipasto Salad - \$9.75 Corned with Bread & Butter with Anchovies

PIZZA BY THE SLICE

- Cheese - \$2.60
- White - \$3.10
- Pepperoni - \$3.10
- Meat Lover - \$4.60
- White Broccoli - \$3.60
- Chicken Bacon Ranch - \$3.60
- Extra toppings - \$0.60



307-369-2159
Dine In or Take Out

Find us on DoorDash, GrubHub & UberEats

PIZZA

- Cheese - \$13.75
- Pepperoni - \$15.75
- White - \$15.75
- White Broccoli - \$16.75
- Hawaiian - \$16.75
- Chicken Bacon Ranch - \$17.75
- Veggie - \$19.75
- Meat Lovers - \$20.75
- The Works with Anchovies - \$20.75
- Extra toppings (per-topping) - \$1.75

TURN-OVERS

- Calzone - \$9.75
- Stromboli - \$9.75
- Panzerotti - \$7.75
- Extra Toppings - \$1.00 (per-topping)

\$5 Sweet Treats

- Cannoli
- Plain New York Style Cheese Cake
- Raspberry New York Style Cheese Cake
- Blueberry New York Style Cheese Cake

Baked Dishes

- All baked dishes come with bread & butter-
- Homemade Lasagna - \$10.25
- Manicotti - \$9.00
- Plain Spaghetti - \$9.00
- Spaghetti & Meatballs - \$12.50
- Spaghetti & Sausage - \$12.50
- Cheese Ravioli - \$10.00
- Baked Ziti - \$10.00

Cold, Tossed & Meat Sandwiches

- Cold-**
- Special Sub - \$9.50
- Ham & Provolone - \$9.00
- Salami & Provolone - \$9.00
- Capicola & Provolone - \$9.00
- Turkey & Provolone - \$10.00
- Extra Cheese - \$1.25
- Toasted-**
- Sausage Sub - \$9.00
- Sausage Parmigiana - \$9.50
- Meatball Sub - \$9.00
- Meatball Parmigiana - \$9.50
- Hot Ham & Provolone - \$9.50
- Chicken Parmigiana - \$10.25
- Extra Cheese - \$1.25
- Steak-**
- Plain Steak - \$9.00
- Cheese Steak - \$9.75
- Cheese Steak Hoagie - \$10.25
- Special Steak - \$10.50
- Pizza Steak - \$10.00
- Chicken Cheese Steak - \$10.25
- Extra Cheese - \$1.25
- Extra Meat - \$3.75

-Add Toppings to any Steak Sandwich for only .80 per topping-

- Full Stuffed Pizza (Extra Large) - \$30.25
- Half Stuffed Pizza - \$17.25

TOPPINGS

- Extra Cheese, Pepperoni, Sausage, Ham, Bacon,
- Ground Beef, Chicken, Pineapple, Mushrooms,
- Black Olives, Green Bell Pepper, Onions, Jalapeños,
- Barana Peppers, Marinated Tomatoes, Marinated
- Broccoli, Fresh Garlic, Anchovies



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TIPS Training as required by state regulations.

All required staff will have completed the Tips Wyoming on-premises alcohol server training. Anyone not certified will not be serving alcohol. This training is essential for alcohol training to comply with state regulations and insurance requirements. Training will be provided before serving alcohol in this establishment.

STATE OF WYOMING
Office of the Secretary of State

I, CHUCK GRAY, Secretary of State of the State of Wyoming, do hereby certify that the filing requirements for the issuance of this certificate have been fulfilled.

CERTIFICATE OF ORGANIZATION

Thompson-Weaver LLC

I have affixed hereto the Great Seal of the State of Wyoming and duly executed this official certificate at Cheyenne, Wyoming on this 10th day of May, 2024 at 3:04 PM.

Remainder intentionally left blank.



Filed Date: 05/10/2024

A handwritten signature in cursive script that reads "Chuck Gray". The signature is written over a horizontal line.

Secretary of State

Filed Online By:

CHRISTOPHER THOMPSON

on 05/10/2024